

The Executor's Step-by-Step Guide

*Settling an Estate in the United States: Probate, Debts,
Taxes and Distributions, Stage by Stage*

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The Envelope on the Kitchen Table

Aunt Bev's kitchen table wore a yellow oilcloth printed with rows of little coffee pots. I sat there the day after we buried her, the Wednesday before Thanksgiving in 2023. In front of me were a long white envelope with a law office's name in the corner, Bev's house key on a ring with a plastic daisy that had lost two petals, and a legal pad I'd brought from home.

The will inside the envelope ran five pages. On the first one, Bev named me her executor.

I read it three times. Each time I reached the end I knew exactly what she wanted, and I had no idea what I was supposed to do the following Monday.

So I made a list. I kept the books for my husband Dale's heating-and-cooling business for 27 years, and a list is what I reach for when I'm frightened and don't care to say so. In about an hour I had nineteen items. Item two was "Call the bank." Item four was "Sewing machine to the lady from quilting circle," because she'd asked about it after the service and I wanted to be kind. Item eleven was "Pay the bills."

That list was not a good start. Roughly a third of it was in the wrong order, and two items weren't mine to do yet. The will didn't mention the sewing machine at all, which meant it belonged with everything else in the estate, and it was not mine to give away that week or for many months after.

What Bev's will didn't tell me, because no will does, was the order.

Collect, pay, hand over

An executor is the person a court trusts to collect what someone owned, pay what they owed, and hand over the rest — in that order.

The order is the job. Most of the expensive mistakes I’ve watched executors make, my own included, come down to one of those three steps done too soon. A bill paid before anyone knew how many bills there were. A recliner handed to a nephew before the debts were counted. An account closed before the court had said who was allowed to close it.

Your court papers may call you a personal representative instead of an executor, and if there’s no will you’ll likely be called an administrator. Same three steps, same order.

One more thing before you go further. Being named in a will doesn’t mean you’ve agreed to anything. If you haven’t decided whether to take this on, start with Chapter 1, which assumes no is a perfectly respectable answer.

Fourteen months

Bev’s estate took fourteen months. By most measures it wasn’t complicated: a widow with no children, one house, a handful of accounts, a car and a storage unit. It still took fourteen months, and I worked on it nearly every week.

For a sense of scale from a court that puts it in writing, the California Courts Self-Help Guide says a formal probate case there “typically takes 9 to 18 months and can sometimes take even longer.” That’s one state’s estimate, and I’m in Ohio. Yours may run faster or slower. Some estates qualify for a shorter small-estate process and never see a full court case at all, which Chapter 2 helps you check. Others stretch out because a house won’t sell or an heir won’t sign.

Most of that time is waiting. The work comes in bursts: a heavy stretch at the start, hard weeks around the inventory and the bills, a

knot of tax forms, then a scramble at the end. In between, you wait for windows to close, and the waiting is part of what protects you.

People will tell you there's no hurry. That's half right, and the wrong half costs money. There's no hurry to pay ordinary bills or to hand anything out. There are tax deadlines, though, and the estate tax return's clock starts on the date of death without sending you a reminder. Chapters 8 and 9 put those dates on your calendar.

Who this is for, and what it hands off

This book is for the person whose name is in the will, or who is about to ask a court to appoint them. You probably have a job. You may have siblings with opinions. You almost certainly have a stack of mail addressed to someone who can't open it.

It's written for readers in all fifty states, so it can't be the last word on any one of them. Probate is state law. Deadlines, forms, fees and even the names of things change at the state line, and sometimes at the county line. When I use California as the worked example, it's because California's court website lays out every stage in plain language, not because your state follows it. At the end of each stage I'll send you to two places to confirm what you've read: your state court's self-help website, and the probate clerk in the county where the person lived. A clerk can't give you legal advice. A clerk can tell you which form, which deadline, and what the local judge expects to see on it.

Two subjects belong to the other books in this series. The first two weeks after a death — arrangements, death certificates, telling Social Security and everyone else — are covered in *The First 90 Days After a Parent Dies*. Writing your own will is *Estate Planning for Beginners*. This book picks up once the service is over and the paperwork is legally yours to carry.

Where I'll tell you to stop

I have never held a law license or a tax credential of any kind. I'm a bookkeeper who settled three estates in one county over eight years — my father's, my mother's, then Bev's — and learned most of it by getting something wrong once. My stories come from those three. The rules come from places you can check yourself: the IRS, the Federal Trade Commission, the Consumer Financial Protection Bureau and state court self-help sites. Every number carries its year and the agency that published it, because figures change, and a number without a date is a rumor.

Some moments in this job call for a careful amateur to put the pen down and phone a lawyer. When we reach one, I'll say so in that paragraph rather than in small print at the back, and I'll tell you why. A will someone is challenging. More debt than money. A business or farm ground. An estate anywhere near the federal estate tax line, or a surviving husband or wife. A beneficiary who has stopped returning your calls and started mentioning a lawyer of their own.

Sam, the Chillicothe estate lawyer who handled Bev's case, taught me that a lawyer's time is best spent on a short list of good questions. You'll meet him again. Hiring help isn't a confession that you can't do the job, and Chapter 1 covers who pays for it.

How to read it

Read Chapters 1 through 3 this week, in order. They're the decisions: whether to serve, what you actually control, and how the court appoints you.

The rest is machinery and money. Getting your authority recognized, the estate's tax number and bank account, the inventory, the bills, two kinds of tax return, handing things out, closing the file and getting paid, with the family running underneath all of it. Those

chapters aren't meant for one weekend. Keep them beside the folder and open each one when you get there.

Every chapter has one tool — a worksheet, a checklist, a decision rule or a script. Use them on paper. You'll want to show your work later, possibly to a judge.

The folder

Before Chapter 1, start a folder. That first evening, Dale brought a one-inch white binder in from his office and set it next to my legal pad.

"You'll want tabs," he said.

He was right. Whatever you use, a binder, a file box or a fat envelope with a rubber band around it, this book calls it the folder, and later chapters will add to it. On day one it holds four things.

1. **A copy of the will.** Photocopy it and keep the original somewhere safe, flat and unmarked. Don't write on it. Chapter 3 covers where your state wants the original and how soon.
2. **The court's contact page.** The name of the probate court in the county where the person lived, the clerk's phone number, office hours and street address, and the web address of your state court's self-help pages.
3. **A phone log.** Every call, every visit: the date, who you spoke to, what they told you, and what they asked you to send. Chapter 4 adds columns. Mine for Bev filled several pages.
4. **A money notebook.** Every dollar you spend out of your own pocket on the estate, with the date, who you paid, what it was for and the receipt stapled behind the page. Chapter 5 shows how to repay yourself properly.

Here's one line from my phone log, written the Monday after Thanksgiving:

Mon., Nov. 27, 2023, 9:10 a.m. Called Sam's office. Spoke to the woman at the front desk. First appointment Thursday at 10. Bring the original will, Bev's house key and a list of what she owned, best guess.

And the first entry in the money notebook, from that same afternoon:

Nov. 27, 2023. Copy counter at the office-supply store on Bridge Street. Four copies of Bev's will, five pages each. \$3.00, my own debit card. Receipt stapled behind.

Neither one is interesting, which is the point. Nobody writes an exciting phone log.

The log line holds three things memory drops first: when you did something, who told you what, and what they asked you to bring. Months later, when a relative asks why nothing happened until December, or an office insists you never called, you turn to the page and read it out.

The money line ties a dollar amount to a date, a reason and a piece of paper. At the end of the case someone will add up everything that came into the estate and everything that went out, and every dollar you fronted has to appear in that count, with proof, or you've paid it yourself. Three dollars doesn't matter. Three dollars plus every stamp, every certified copy and every tank of gas across fourteen months adds up to real money, and only the notebook knows the total.

The log and the notebook are my habits, not legal requirements. The reason behind them is real, though. In California, the court expects a final account of the estate's money at the end of the case unless everyone entitled to a share signs a written waiver, and other states have their own versions of that reckoning. Fourteen months is a long time to reconstruct from memory.

Tonight, write today's date on the first line of the phone log, even if you haven't called anyone yet.

Start the log.

Chapter 1: You Can Say No

Sam's office was on the second floor above an insurance agency, up a flight of stairs with a brass rail somebody kept polished. I was there at ten o'clock on Thursday, November 30, the appointment from my phone log, with Bev's original will in a manila folder on my lap.

Sam read all five pages without a word. Then he took off his glasses, set them on the desk blotter and asked, "Do you want to do this?"

"She named me," I said.

"That isn't what I asked."

He let it sit long enough that I heard the radiator tick under the window. I said yes before he'd put his glasses back on.

I'd still say yes. But I'd have said it a week later, and by the end of this chapter you'll see why.

Named is not the same as agreed

A will nominates. It doesn't conscript. The person who wrote it can choose you, and nobody, a judge included, can make you take the job. Bev's will was her request. My yes was a separate act, and so is yours.

Until a court has put you in charge, you can turn the job down. While you decide, don't distribute, sell or dispose of anything that belonged to the person who died. California's court self-help guide, as it read in October 2026, says a judge appoints the personal representative at a hearing, and that a representative must be appointed to get access to the person's bank records. Other states

handle the weeks before appointment in their own ways. If a bill or an action seems necessary to preserve property in the meantime, ask the probate clerk what the court's current procedure, forms and deadlines are for an urgent request. For authority, liability, or a disputed legal reading, ask the estate's lawyer, including whether anyone may pay that bill before a court has appointed anyone. Write down the answer and keep the receipt for anything you pay.

Look first for an alternate, a second name in the will, sometimes a third, who serves if the first person can't or won't. A careful will names one.

If there's no alternate, or the alternate says no too, the court chooses, and state law tells it whom to prefer. California's court self-help guide lays out that state's order plainly, as it read in 2026: a surviving spouse or domestic partner first, then a child, a grandchild, a parent and a sibling, with a judge deciding who actually has priority. Your state has its own list. The probate clerk can tell you where to find it.

Once you're appointed, the picture changes. You'd be asking the same court to let you step down, under your state's rules, and that's a conversation for a lawyer rather than a form you pick up at the counter. The time to decide is now, before anything gets filed with your name on it as the person in charge.

Decide first.

What the job actually takes

People who haven't done it picture a few signatures. Here is the bill as I'd itemize it.

Time comes first. You already have California's estimate and my fourteen months, so here's the texture instead. The job lives inside your week. A call on your lunch break. A form at the kitchen table after supper. A Saturday morning sorting statements into piles on

the dining room floor. Some weeks it's twenty minutes. A few weeks early on, it ate most of my evenings, and Dale learned to make his own supper without being asked.

Then there's money, which surprises nearly everyone. The estate is generally expected to pay the costs of settling itself, eventually. At the start, though, its money is usually sitting in accounts nobody can touch yet, so the person doing the work pays. California's self-help guide says the personal representative usually pays fees upfront and gets paid back from the estate later. In 2026 that guide puts the typical California filing fee at \$435.00 and says the costs of administration are "often well over \$1,000.00 and can be much more." Other states charge other amounts. The clerk will tell you yours over the phone.

For Bev's case I fronted the filing fee and a string of smaller costs out of Dale's and my checking account, before the estate had an account of its own. I got every dollar back, because of the money notebook. That's my story, not a promise. California says these costs are *typically* repaid, and whether yours are can depend on your state's rules, whether the expense was necessary, whether you can document it, whether the court approves it and whether the estate has money left to pay it. If I'd been a year from retirement with nothing set aside, that wait would have been a real hardship. It's a fair thing to weigh before you agree.

The third cost never shows up on a receipt. You'll spend a year as the person who says "not yet." Not yet on the furniture. Not yet on the money. Not yet on selling the house your sister thinks should go on the market next week. Some people find that easy. I kept books for a living, and I still found it wearing.

Whether you get paid for any of this has a different answer in different states, and it waits for Chapter 11.

The four duties, in plain words

Once a court appoints you, you're a fiduciary. The word means you're handling property that belongs to somebody else, and the law expects more care from you with it than you might take with your own.

There's no federal handbook written for executors, and I want to say that plainly, because I've seen people recommend one that doesn't exist. The Consumer Financial Protection Bureau publishes a free series called *Managing Someone Else's Money*. Its page, as last updated in June 2026, offers guides for four roles: agents under a power of attorney, court-appointed guardians and conservators, trustees, and government fiduciaries such as representative payees. There's no executor guide in the set.

What those guides share is a set of four basic duties. They carry over to an estate well enough that I use them as my own checklist. Your state's law sets your real duties, and it may ask for more, but you won't go far wrong starting here.

Act for the people the estate now belongs to, not for yourself. If you're also a beneficiary, as family executors very often are, you get your share and not a penny of advantage. You don't pick first. You don't buy the car from the estate at a family price unless the court or the estate's lawyer has said you may.

Manage the money carefully. Nothing clever. The estate's cash doesn't go into whatever your brother-in-law is excited about this year. It should arrive at the end in about the shape it started, minus honest costs.

Keep it separate. The estate's money never sits in your account, not overnight, not for convenience. Chapter 5 shows you how to set that up.

Keep records. Every dollar and every decision, written down when it happens, in the folder.

None of the four is hard to understand. Doing them on a Tuesday night, tired, with a cousin on the phone, is another matter.

Five questions that decide it

When someone asks me whether they should serve, I don't ask whether they're organized. I ask five other things.

Do you live near the court? Most of the work happens by phone and mail, but not all of it, and the clerk's window keeps business hours. I stood at that window more than once for Bev. If the person lived three states away from you, ask the clerk now how much has to be done in person, and whether your state puts any conditions on an executor who lives somewhere else.

Can you be even-handed with your siblings? Not friendly. Even-handed. If your brother borrowed money from Mom and never paid it back, can you treat that as a fact to raise with the lawyer instead of a score to settle?

Is there something in the estate that's a job by itself? A business that still has customers. Farm ground with a tenant on it. A rental house. A house so full that emptying it is a summer's work. Any one of these can double the job, and some need a professional in the first week.

Can you say no to people you love? Someone will want something early. A cousin will ask for the good tools out of the garage, meaning well, before anyone has counted what the estate owes. If refusing that cousin would cost you a month of sleep, count it.

Can you spare a year of Saturdays? Not all of them. Enough that you'll notice.

Saying no, early and on paper

If your answers come out against you, decline, and do it soon. The kindest no is the early one, because every week you spend deciding is a week the alternate can't start.

Tell the alternate first, privately, so they hear it from you and not from a court notice. Then tell the rest of the family in one message sent to all of them at once, so nobody gets a different version. Keep it short. You've thought it through, you won't be serving, the will names someone else next, and you'll hand over everything you've gathered.

Then make it official. Ask the probate clerk exactly what your court needs from you in writing to put your refusal on record, and get it filed. A phone call to your sister is not a refusal anybody else can rely on.

Whether to serve and what the will leaves you are two separate questions, usually on two separate pages. Read yours anyway, and if any wording seems to tie a gift to serving, ask a lawyer before you decide.

Hand over what you have in one envelope with a list clipped to the front: the copy of the will, your phone log and the money notebook. That last one matters. List every documented estate-related payment so the next representative can request reimbursement under your state's rules. Nobody can ask to repay a cost that nobody wrote down.

Two names on one line

Some wills name two people to serve together. Usually it's two siblings, sometimes a sibling and a spouse. It sounds fair, and it often is. It's also slower.

California's self-help guide says two or more people can represent an estate together, but they "must always act together." In practice

that means both signatures, both opinions and both calendars on everything, for the whole case. If you and your co-executor think alike and live near each other, that's a safeguard, because nobody can quietly empty an account. If you don't, it's a deadlock with a filing fee.

Other states treat co-executors differently, and some wills spell out how the two should split the work. Before you agree to serve with someone, ask the clerk how your court handles two representatives. Then sit down with the other person and agree, on paper, who calls whom, who keeps the folder and how you'll settle a disagreement. If you can't have that conversation calmly now, you've learned something useful.

Yes, with conditions

You can say yes and still decide you won't do it alone. Hiring a lawyer to advise the executor is ordinary, and so is the estate paying for it. California's guide, for one, says you can usually pay a lawyer's fees from the property in the estate, and that a representative handling the case without a lawyer can often pay for a consultation on a single question along the way. How your state approves those fees varies. Ask.

People say hiring a lawyer means admitting you can't handle it. That's backward. A lawyer is how a careful amateur avoids the handful of mistakes that can leave you personally on the hook for money that was never yours. Sam didn't settle Bev's estate for me. He told me what to file and in what order, I did most of the legwork, and his time came out of the estate.

Some situations make professional help the price of my yes. They're the stop signs I named in the introduction: a fight over the will, more debt than money, a business or farm, an estate near the federal tax line or a surviving spouse, a beneficiary who has started

talking about a lawyer. If one of them is already in front of you, book an hour with a probate lawyer before you either accept or decline. That hour commits you to nothing and tells you what you'd be signing up for. Add a CPA to the list if the person ran a business, owned rentals or left years of tax returns unfiled.

Put the condition into your answer. "Yes, if the estate hires a lawyer from the start" is a complete sentence, and a reasonable one.

What I'd change

I said yes three times in eight years, and the first two hardly count as decisions. When my father died in 2016 and my mother in 2019, I was the one who lived twenty minutes from the house, my brother was in Tucson, and the question never came up. The work was there, so I did it.

Bev's estate was the only time anyone actually asked me. I answered before Sam had his glasses back on.

Dale was at the kitchen table when I got home, reading the paper. I told him the whole morning. He folded the paper in half and said, "Did you ask what it costs to start?"

I hadn't. I hadn't asked how much I'd have to put in before the estate could pay me back, or roughly when that would be. I hadn't driven out to look at the storage unit, which took far more of that year than I'd have guessed. And I hadn't told Dale our Saturdays were spoken for until after I'd promised them away.

None of it would have changed my answer. Bev had no children of her own, and I knew her well enough to do the job her way. But a week would have let me say yes on terms: a rough figure from Sam for what I'd front and what his help would cost, a look inside that storage unit, and a conversation at home before the promise instead of after it.

Take the week.

One caution with it. If you're the one holding the original will, call the clerk this week and ask whether your state wants it delivered by a certain date. That clock may not wait for your decision, and Chapter 3 covers it.

The honest yes/no worksheet

Write these nine questions on one sheet of paper. Answer each with one word: **yes, with help** or **no**. A "no" means a hard no. Not "I'd rather not," but "I can't, I won't, or it would cost me something I'm not willing to pay."

1. Can I get to the probate court in the county where they lived, during business hours, when I'm needed?
2. Can I give this a few hours most weeks for a year or more, with heavier stretches?
3. Can I pay some costs out of my own pocket and wait months to be repaid?
4. Can I treat every beneficiary the same way, including myself and the one I get along with least?
5. Can I tell a relative no, in writing, and hold to it?
6. Is the estate free of anything that's a job on its own: a business, farm ground, rentals, a house that will take a season to empty?
7. Is everyone likely to accept the will as written?
8. Does the estate clearly own more than it owes?
9. Will I keep the folder up, every call and every dollar, from the first week to the last?

Then count your noes.

None: the worksheet found no obvious stop sign. Confirm the role, the costs and your court's local requirements, then decide.

Declining is still allowed. Your “with help” answers are your list of who to hire.

One: serve only if you can turn that one into “with help” before you accept, and name the help — the lawyer, the CPA, the cousin with a truck.

Two or more: decline, or accept only with a probate lawyer engaged from the start, and say that condition out loud when you give your answer.

Questions 6, 7 and 8 weigh more than the rest. A no on any of them is the kind that turns a hard year into a court fight, so take it to a professional whatever your total.

Date the sheet and put it in the folder. If you change your mind in March, you’ll want to know what you were thinking in November.

When I finally answered Sam, he wrote it on his yellow pad with the date underneath, the way he wrote everything down. Fill in the sheet tonight. Sleep on it once. Then give your answer, to the family, the alternate and the clerk, before the week is out.

Chapter 2: What You Control as Executor, and What You Don't

Marlene came across the road at ten past eight on a Saturday in March 2026, carrying a cinnamon coffee cake in a glass pan under a dish towel and a canvas tote bag over one shoulder. She set both on my counter and took the towel off the cake first. That's how I knew it was serious.

Her late husband's older brother, Ed, had died that February in Peoria, Illinois. He was a widower with no children, a rented apartment and a twelve-year-old sedan titled and registered with the Illinois Secretary of State, and in a will he'd signed in 2019 he named Marlene his executor.

The tote bag held what she'd found when she cleared his apartment. A credit union statement. A brokerage statement. A letter from his old employer's benefits office. The car title. And a printout listing three Peoria probate lawyers, with their hourly rates written beside each name in her handwriting.

"It all has to go through court," she said. "Doesn't it?"

I told her I didn't know yet, and neither did she, and that was the first useful thing either of us had said all morning.

A will reaches less than you think

Most people in Marlene's chair start from the same picture. The will is the map, so everything the person owned now belongs to the executor to gather up. That picture is wrong in a way that costs money and friendships.

Probate is the court process that recognizes the will if there is one, appoints someone to act for the estate, and handles whatever the person owned that doesn't pass some other way. California's court self-help guide adds the line that surprises people: an estate may need to go through probate even if the person had a will. A will isn't a way around court. It's the instructions for the part court handles.

Your authority as executor covers that part, and that part is often a good deal smaller than the pile on the counter.

The other ways property passes — a surviving joint owner, a beneficiary named on an account or policy, a trust — are how people plan, and setting them up belongs to *Estate Planning for Beginners*. You're past planning. Your job is to find out, item by item, which way each thing is actually going, and to prove it on paper before you act on it.

Get the paper

The protocol has three steps, and you run all three on every item. The house, the car, each account, each policy, the storage unit.

Step one: get the evidence. Not what the family remembers. Not what Mom said at Easter about who gets the savings. The document, with a date on it.

For real estate, that's the deed as recorded. California's guide points out that deeds are public records, kept at the county recorder's office where the property sits, so you can usually request a copy before anyone has appointed you. Your county has an equivalent office, and its website will tell you which one. When I pulled Bev's deed at the Ross County recorder's office, it showed her name alone, and that line on my sheet took ten minutes.

For a vehicle, it's the certificate of title. Read the owner line and look for a second name.

For a bank, credit union or brokerage account, the statement's titling line is a start. The better evidence is the institution's written answer to one question: is there a joint owner, a payable-on-death or transfer-on-death beneficiary, or a trust on this account? Getting that answer can take patience. California's guide says bank records are private and a personal representative must be appointed to get access, though statements found at home often show a good deal. Some institutions may answer a named executor who sends a death certificate and a copy of the will. Others won't say a word until you hold court papers, which Chapter 3 covers.

For life insurance, annuities and retirement accounts, you want the company's written statement of the beneficiary on record. Not the copy in the desk drawer from 1998. The company's file is the one that counts, and the person may have changed it since.

Ask in writing.

Step two: decide whether you have authority over it.

These are rules of thumb, not law, and your state may differ at the edges.

If it's in the person's name alone, with no surviving co-owner and no living beneficiary named, the answer is usually yes. It's yours to handle through the estate.

If a living beneficiary is named on it, the answer is usually no. California's guide notes that people named as beneficiaries on a retirement or bank account may have their own decisions to make and steps to take to claim the property. Those steps are theirs.

If there's a surviving joint owner with a right of survivorship, usually no. If a trust owns it, usually no. The trustee handles trust property, and the trustee may or may not be you.

Marriage complicates this. California's guide warns that a surviving spouse or domestic partner may own part of a piece of property even when they aren't listed as an owner, depending on

whether it's community property or separate property. If the person was married when they died, don't decide that question yourself.

Step three: mark anything that doesn't fit cleanly as "unclear," and send it to a lawyer before you touch it. A deed with two names and no survivorship wording. A beneficiary who died before the person did. A trust you can't confirm ever held the property. A form your brother says was signed the week Dad stopped recognizing anyone.

You'll be tempted to settle these by common sense. Don't. Common sense about titles can be wrong, and an executor who acts on a wrong guess may have to answer for it personally.

What "no" means in practice

When an item comes back "no authority," it isn't yours to manage, sell or hand out. You don't move it, you don't use it to pay bills, and you don't call the company to hurry along your sister's claim unless she asks you to.

Here is the part people argue with. Say your mother's life insurance names your sister, and the estate is short. The funeral home has sent a final bill, there's a credit card balance, and the estate account holds less than both. The policy money generally isn't the estate's, and as executor you generally have no say over it. Your sister may decide to help. That's her decision, made with her own money.

Whether a creditor can ever reach property that passed outside the estate is a question of state law, and the answer can differ from one state to the next. That belongs to a lawyer, and it isn't something you act on yourself.

The same goes for two suspicions families raise in the first month. One is that a beneficiary form was invalid: signed under pressure, signed when the person couldn't understand it, or never properly filed. The other is that a joint account was only ever meant to help

pay the bills and was never meant as a gift. Both are lawyer questions, not self-help ones, and both turn on facts and state law a book can't weigh for you. If either one is in front of you, mark the line unclear and book the hour.

“No authority” doesn't mean you forget the item. Keep a separate page in the folder for everything that passed outside the estate, with the evidence beside each line. The inventory you'll file with the court lists only what the estate controls. The tax side looks wider. The IRS's estate tax page, last reviewed in December 2025, lists insurance, trusts and annuities among the things that can count toward what a person owned for estate tax purposes, and Chapter 9 sorts out whether that matters for you. For most families it won't. You want the page anyway.

When the whole case may be avoidable

Some estates never need a full probate case. States commonly offer a shorter procedure for estates that qualify, often a sworn affidavit or a brief court petition, but the conditions and the thresholds differ, so check your state court's current page and your probate clerk before you assume either way. The limits are frequently higher than people expect.

California is the clearest example of how these numbers work. According to the California courts' table of summary procedures, personal property can be collected without the full probate process when the estate is worth no more than \$208,850, for deaths on or after April 1, 2025. A separate, shorter court petition can transfer the person's main home in California when it's worth no more than \$750,000; Assembly Bill 2016 raised that limit and narrowed it to the main home. The Judicial Council adjusts these amounts every three years, and the next update is set for April 1, 2028.

Notice that the limit depends on the date of death, not the date you file. California's personal property figure was \$166,250 for deaths before April 2022. It's been raised twice since.

Illinois shows how differently another state can build the same idea, and how much it asks of the person signing. The Illinois courts' approved statewide small estate affidavit, in the version dated November 13, 2025, is a three-page sworn form you fill in yourself. Excluding motor vehicles registered with the Secretary of State, the person's entire personal estate passing to anyone by will or by intestacy must not exceed \$150,000. You swear that no letters of office are outstanding on the estate and that no petition for letters is contemplated or pending in Illinois or in any other jurisdiction, to your knowledge. If there's a will, it must have been filed with the clerk of an appropriate court, and a certified copy goes attached to your affidavit. You state you're unaware of any dispute or potential conflict about the heirship or the will. The form reaches personal property. It does nothing about real estate.

Then comes the part people hope they can skip. Debts don't vanish because you're using the short form. The affidavit gives you two choices in paragraph 7: either all the funeral expenses and other debts are already paid, or every known unpaid debt is listed and classified, with the creditor's name, post office address and amount. Illinois sorts those debts into seven classes, running from funeral and burial expenses and the costs of administration down to a seventh class for all other claims. You then sign paragraph 7.5. It says you understand that valid claims must be paid by you from the estate before any distribution is made to any heir or legatee. If the estate can't cover one class, the claims in that class are paid pro rata. Paragraph 10.5 has you agree to indemnify creditors, heirs, legatees and any institution that relies on your affidavit for whatever they lose through an act or omission of yours, plus their attorney's fees.

Read those two paragraphs twice. A contested claim, or any real uncertainty about which class a debt sits in, is an Illinois probate lawyer's hour, not a kitchen-table decision.

That's where Marlene's tote bag ended up.

She sent a short letter to each of the three institutions, with a copy of Ed's death certificate and his will, asking the one question. The brokerage wrote back that the account was registered transfer-on-death to her two grown children and that it would deal with them directly. The benefits office wrote that the group life policy named Ed's late wife's sister. The credit union confirmed that the checking account was in Ed's name alone, with no joint owner and no beneficiary. That account, his furniture and some cash in a coffee can were well under \$150,000. The sedan was registered with the Illinois Secretary of State, so it sat outside that figure. He'd rented, so there was no real estate.

Ed owed money, the way most people do. A final electric bill. A cell phone bill for February. The funeral home. A card balance of a few hundred dollars. Marlene listed every one of them on the affidavit in its class, with the address and the amount, and paid them out of Ed's checking before a dollar went to anyone named in the will. No one in the family had been to court about Ed, and no one meant to, which is what let her sign paragraph 5 honestly.

She filed Ed's will with the probate clerk in Peoria, attached a certified copy to the affidavit, and paid a Peoria lawyer for one hour to read the whole thing before she signed it. She never opened a court case. Her letters went out in the first week of April 2026, and the last answer came back three weeks later.

She carried the last letter across the road at the end of April, with no cake this time. "I could have saved myself the cinnamon," she said.

Your state's rule, in ten minutes

You don't need a lawyer to find out whether your state has a small-estate process. You need ten minutes and a skeptical eye.

Search for your state's name plus "small estate affidavit," and open the result from your state court's own website, not a law firm's blog or a forum thread. Blogs go stale, and these limits move. As you read, write down four answers on the authority check sheet:

1. What is the current limit, and for deaths on or after what date?
2. What counts toward the limit? Vehicles, real estate, only personal property?
3. How does the process handle debts: must they be paid first, listed, or ranked in classes?
4. Is there a waiting period after the death before the process can be used?
5. Does the process require filing anything with the court, such as the will or a certified copy of it?

Then phone the clerk's office in the person's home county and read your answers back. The clerk can't advise you on whether to use the process. The clerk can tell you whether the page you read is current, which form the county uses and whether anything local applies.

Write down the date you checked and who confirmed it. If the estate is close to the limit, or any of the conditions is shaky, or you can't say with a straight face that you know what the person owed, that's an hour with a lawyer, not a judgment call at the kitchen table. A small-estate affidavit is a sworn document, often with your own indemnity attached, and you want to be sure every statement in it is true before your name goes at the bottom.

Open, administer, close

If the estate is too large for the short process, or the conditions don't fit, you're headed for a full case. California's guide describes a formal probate case in three parts: opening the case, administering the estate, and closing it. Your state will use its own names and forms, but the shape is a useful map, and it's how the rest of this book runs.

Chapter 3 is the opening: getting the court to appoint you. Chapters 4 through 9 are the administering, and Chapters 10 and 11 are the closing.

Before you go on, hold this chapter up against your own state's court pages and the county clerk's office that handles probate where the person lived. Procedure, blank forms and filing dates are the clerk's ground, and the clerk beats me on all three. Your powers, your exposure and any rule two people read two ways: that's lawyer territory.

The authority check

One sheet of paper, or as many as it takes, one line per item. Every line has five parts:

1. **Item.** What it is and where it's held, with only the last four digits of any account number.
2. **Evidence.** The document you're relying on and its date: recorded deed, title, the institution's letter, the insurer's beneficiary statement.
3. **Authority.** Yes, no or unclear. Nothing else.
4. **Confirmed by.** Who told you, and when. A name at the institution, the clerk, the lawyer.
5. **Sent to counsel.** For every unclear line, the date you sent it and the date the answer came back.

Here are three lines the way I'd write them. The first is from Bev's estate. The other two are invented examples of the kinds of lines you'll see.

House, Bev's address. Recorded deed, copy from the Ross County recorder. Authority: yes. Confirmed by: the deed itself, plus Sam.

Brokerage account ending 4417. Firm's letter dated April 9: transfer-on-death to two named beneficiaries. Authority: no. Confirmed by: the firm's estate services department. Copy on the outside-the-estate page.

Savings ending 0932. Statement shows a nephew as joint owner, added 2021; nephew says it was "just to help with bills." Authority: unclear. Sent to counsel May 2.

Then the decision rule, which I'd hold to whatever your state:

- Nothing marked **unclear** gets touched until a lawyer has answered in writing.
- Nothing marked **no** goes into the estate's account or onto the court inventory. It goes on the separate page.
- Nothing marked **yes** moves until you have authority to move it, either the court's appointment or a small-estate process your clerk has confirmed you qualify for.

Write today's date at the top and file it behind the yes/no worksheet from Chapter 1. You'll come back to it more than you expect. When Chapter 6 asks what goes on the inventory, the yes lines are your starting list. When a cousin asks why the insurance money didn't pay the hospital, the no lines are your answer, with the paper behind them.

Start with the item you're surest of. Then do the one you're least sure of, while you still have the energy to chase it.

Chapter 3: Getting the Court to Say You're the Executor

The deputy clerk at the Ross County Probate Court slid four envelopes under the glass on the second Tuesday of January 2024. Each held one certified copy of my Letters of Authority for Bev's estate, with the court's raised seal pressed into the corner. I counted them twice, put them in my handbag and felt, for about a week, extremely well organized.

I'd counted four places that would want proof. The bank downtown. The second bank, out by the bypass. The Bureau of Motor Vehicles, for Bev's car. The title company, whenever the house sold.

I needed six.

The company insuring Bev's empty house wanted one before it would put the estate's name on the policy. And there was an annuity I didn't know existed yet, which Chapter 6 gets to. Both kept their copies. In March I was back at the same window, ordering two more, and the deputy clerk remembered me.

Dale was at the sink rinsing out his thermos when I came in that afternoon. "Next time," he said, "count the ones you haven't found yet."

The court's paper is what opens doors. The will doesn't.

The original will has a clock

Start with the will, because the will may have a deadline before you've decided anything else.

California's court self-help guide says it without decoration: if you find an original will, you must deliver it to the court. California Probate Code section 8200, as published for 2026, adds the clock. Unless a petition for probate gets filed first, whoever has the original must deliver it within 30 days of learning about the death to the clerk of the superior court in the county where the estate may be administered, in person or by registered or certified mail. That person also has to send a copy to the executor named in the will. And a custodian who fails to do it can be liable for the damages anyone suffers because of it.

Thirty days is California's number. It isn't a national one, and I won't give you a national one, because there isn't one I can point you to. Your state has its own statute and may have its own clock. Look it up this week, on your state court's self-help site or by phoning the probate clerk, and write the deadline on the front of the folder.

For Bev's will, this was the easy part. The original was in the law office's envelope I'd opened at her kitchen table, and on November 30 I carried it up the stairs to Sam's office in a manila folder. Sam's office handled the filing. I kept the photocopies in the folder, and I didn't write on the original, then or ever.

Two situations change this, and both belong to a lawyer from the first phone call.

The first is when you can find only a copy. A photocopy, a scan someone emailed, a carbon from a drawer. Whether a court will accept anything less than the original is a legal question with a lot riding on it, and you don't want to guess.

The second is when someone else has the original and won't hand it over. That's not a family disagreement you settle at Sunday dinner. It's a lawyer letter.

Which court, and which county

Probate is handled county by county, so the first practical question is which courthouse.

The general answer is the county where the person lived when they died. California's guide says the case is filed in the county where the person lived, and that if they lived outside California but owned property there, the case goes in the California county where that property sits.

That second rule hints at something bigger. If the person owned a house or land in a second state, that property may need its own proceeding there, under that state's law. Out-of-state real estate is a lawyer question before it's anything else. Don't assume the court back home can reach a cabin three states away.

Once you know the county, find its probate court's website and the clerk's phone number, if they aren't already on the court's contact page in your folder. Call before you go. Ask what the court's hours are for filing, whether it takes filings by mail or online, and whether it has a self-help center or a list of local rules for probate. Some counties have their own forms and their own preferences on top of the state's.

Call first.

The petition that opens the case

Every formal case starts with a request asking the court to open it and appoint someone. In California that's the Petition for Probate, form DE-111, which the courts describe as asking the court to start the process for distributing a deceased person's property, paying their debts and settling their financial affairs. The person who files it is called the petitioner. Usually that's you.

Other states have their own petition or application, with its own name and number. The clerk can tell you which one your court uses.

Some states post the form on the state court site; some counties hand it out at the window.

The petition doesn't travel alone. California's guide says you file it "along with other court forms," and one of them is worth reading slowly before you sign anything. Form DE-147, Duties and Liabilities of Personal Representative, explains a representative's duties and what can happen if they aren't carried out, and people asking to be appointed use it to tell the court they've received it. Read every line. It's the job description, written by the people who'll be checking your work.

Then the money. You'll pay the filing fee from Chapter 1, California's typical \$435.00, unless you apply for a fee waiver, which California allows if you can show financial hardship. California's court site lists certified copies of court papers among the fees a granted waiver can cover, which matters more than it sounds once you start counting Letters. Either way, these fees can usually be paid or reimbursed from the estate later. Write the check, staple the receipt into the money notebook, and move on.

When you file, the California clerk stamps the forms and gives you a hearing date and a department number. That date is the next fixed point in your life for a while. Put it on the calendar in ink.

My own appointment for Bev was quieter than the California version you're reading about. Sam's office prepared the papers, I signed at his desk where the tip of his pen pointed, and the Letters came that January. Don't read anything into that about your own state. Courts differ, and so do estates.

Telling people, the way the court wants it done

Once a hearing is set, the people with a stake in the estate have to be told. This is the step that trips up careful people, because the rules about how are stricter than anyone expects.

In California, you must give notice of the hearing to the person's family members and to anyone who may have a right to some part of the estate. The court's form for this is DE-121, Notice of Petition to Administer Estate, which tells them that the petition was filed, gives the date, time and place of the hearing, and explains what to do if they disagree with the petition.

Here's the catch. California's guide says another adult who is not a party to the case mails the notice. You can't mail it yourself. A neighbor or a friend with no stake can do it, and the court will want proof that it happened the way the rules say.

California also requires you to arrange for the notice to be published in a newspaper of general circulation in the city where the person lived. The newspaper charges for it. You can be reimbursed from the estate later.

If the person died without a will, or the will leaves things to people you've never met, the list of who gets notice may be longer than you think. A cousin in another state. A stepchild the family lost touch with. Who counts is state law, so ask the clerk or a lawyer before you decide someone doesn't need to hear from you.

Then let notice do its job. If someone objects to the petition, files something, or calls you angry about the will, you've moved out of self-help territory. A contested will is one of the clearest places in this book where I'd stop and hire a probate lawyer, paid from the estate where the court allows it. Don't argue the will with relatives on the phone. Get the lawyer, and let the lawyer answer.

The hearing, and what the judge is deciding

At the California hearing, a judge decides whom to appoint as personal representative. The guide says you should attend in case the judge has questions. If there are no questions about the petition, the

notice or the publication, the judge may grant the petition and appoint you.

Notice what's being checked. Not whether you love the family, or whether you'll do a good job. Whether the paperwork is complete, whether everyone was told the right way, and whether anything stands in the way. If a piece is missing, expect to be asked to fix it before anyone is appointed.

Afterward, California issues an Order for Probate, form DE-140, which states the court's decision appointing you and lists your powers and responsibilities. Read that list. If you're ever unsure whether you're allowed to do something, the order is the first place to look, and the lawyer is the second.

Letters: the paper that opens doors

Then comes the document everyone will actually ask for.

California's form is DE-150, titled plainly "Letters," and the courts describe it as what an appointed representative uses to prove to others that the court has officially appointed them. Mine, from Ross County, were titled Letters of Authority. You'll also see letters testamentary and letters of administration, depending on the state and on whether there's a will. The name matters less than the job. Banks, brokerages, title companies and the motor vehicle office may each want this paper, often as a certified copy with the court's seal, and not the will.

So count before you order.

Here's my habit, since the Ross County window, and it's only a habit. Start with every "yes" line on the authority check from Chapter 2, because each of those is an institution you'll need to show authority to. Add the insurer for any property the estate owns. Add the title company or the recorder if there's real estate to sell or

transfer. Then add two for whatever you haven't found yet, because you haven't found it yet.

Then ask each institution two questions when you first call: do you need a certified copy, and do you keep it or send it back? Some will look and return it. Some will put it in a file and you'll never see it again. Their answer changes your count.

Ask the clerk what certified copies cost, whether you can order more by mail later, and how long that takes. Write the answers on the court's contact page. You may have a perfectly good reason to make a second trip one day. Running out shouldn't be it.

Death certificates are a separate count from a separate office, and the series' book on the first weeks after a death, named in the introduction, handles that one. Institutions often want both.

Bond, and when the court wants one anyway

A probate bond works roughly like insurance for the beneficiaries and creditors: if the representative mishandles the money, the bond is there to cover the loss. A court may require one before it issues Letters.

California Probate Code section 8481 sets out when a bond isn't required there: when the will waives it, or when all the beneficiaries waive it in writing and those written waivers are attached to the petition, unless the will itself requires a bond. The same section adds the part people skip. Even with a waiver, the court may require a bond for good cause, either on its own or because an interested person asks, before or after Letters are issued.

So read the will for the word "bond." Bev's said none was required, and the court didn't ask for one, but that's her will and her court. If your will says nothing, or the beneficiaries don't all agree to waive it, ask the clerk what your court expects, what a bond would cost and who pays for it. Better to learn it now than at the window.

Supervised or independent

This question changes your next six months more than any other in this chapter, and almost nobody asks it.

California has a law called the Independent Administration of Estates Act. Under Probate Code section 10450, the representative asks for that authority, either in the same petition that asks to appoint them or in a separate one, and can request full or limited authority. Under section 10500, a representative granted it may administer the estate without court supervision, within that law's limits, but otherwise must handle the estate the same way as anyone else. The representative can still ask the court to supervise any particular action.

In plain terms: with independent authority, many ordinary steps don't need a judge's approval first. Without it, more of what you do waits on the court. Full and limited authority differ in what they let you do on your own, and your Order for Probate will say which you have.

Other states have their own versions of this idea, under their own names, and some don't have it at all. Ask the clerk, before you file, whether your state offers a form of administration with less court supervision and what you'd need to request it. Ask again after the hearing which kind you received. If you have a lawyer, this is one of the first questions on the list.

If there's no will

Without a will, you're an administrator rather than an executor. California's court glossary describes the administrator as the person, usually the spouse, domestic partner or a close relative, whom the court appoints to manage the estate of someone who died without one. The order of preference comes from state law, and Chapter 1 gave you California's version.

The court process looks much the same: a petition, notice, a hearing and Letters. What changes is who inherits. With no will, your state's intestate succession law decides that, and the heirs it names will be among the people you notify. Planning around intestacy is in *Estate Planning for Beginners*. Here you need only the list of heirs your state's law produces, and if you aren't sure who's on it, a lawyer can tell you before you send a single notice.

The first court visit checklist

Take this with you the first time you go to the probate clerk's window, or keep it in front of you on the phone. Next to each answer, note the date and who told you.

1. **The original will**, or the clerk's written confirmation that it has already been delivered, with the date.
2. **The person's full legal name, last address, date of death and county of residence**, exactly as they'll appear on the petition.
3. **The names and mailing addresses of everyone who may need notice**: the people named in the will, and the heirs your state's law would name.
4. **Any written bond waivers** from the beneficiaries, if the will doesn't waive bond and they're willing to sign.
5. **The filing fee, or a fee-waiver application**. Ask whether the court takes a personal check.
6. **Ask: which petition form does this court use, and are there local forms on top of the state's?**
7. **Ask: who may mail notice, what proof of mailing do you want, and which newspaper do people use for publication?**

- 8. Ask: does this state offer administration with less court supervision, and how do I request it?**
- 9. Ask: what will my Letters be called, what does each certified copy cost, and can I order more by mail?**
- 10. Ask: what does the court expect me to file after appointment, and when?**
- 11. Ask: which of these filings has a deadline I can miss?**

Number eleven is the one I'd ask even if I forgot the other ten. A clerk can't tell you whether to file something. A clerk can usually tell you whether a date exists, and that's the information that hurts most when you find it out late.

Before you file, hold everything in this chapter up against your own state. Read the probate pages your state court publishes for the public, then phone the county's probate clerk and read your answers back. Where a clerk describes how the court runs, which form to use and when it's due, the clerk is right and this book isn't. Anything touching authority, liability or a disputed legal reading goes to the estate's lawyer instead.

When the Letters come, write the date they were issued on the front of the folder. Every deadline from here on counts from a date like that one.

Count the copies twice.

Chapter 4: The First Thirty Days With Letters

“I’m sorry, Mrs. Calloway. We don’t have anything from you.”

It was Thursday, February 1, 2024, about twenty past ten in the morning, and the woman on the line worked for the second bank, the one out by the bypass, where Bev kept a savings account and not much else. Three weeks earlier I had mailed that bank a letter and a certified copy of my Letters of Authority, asking it to put the account in the estate’s name and tell me what else it needed. Now, as far as its computer knew, there was no letter, no copy and no me.

The phone log was open on the kitchen table, because by then it always was. I turned back to January and read her one line.

Wed., Jan. 10, 2024, 9:45 a.m. Second bank, savings ending 0371. Main number, transferred to the estate department. Man gave his first name and extension 4410. Said: mail a letter and one certified copy of the Letters to the department’s post office box, attention estate services, reference 24-0110-B on the letter. Mailed Thurs. the 11th by certified mail. Receipt stapled behind.

There was a pause long enough to hear her typing.

“Let me call you back.”

She did, at a quarter past two. The letter had been scanned into another department’s queue the day it arrived, my reference number printed right across the top, and had sat there for three weeks waiting for someone to notice it wasn’t theirs. Nobody had done

anything wrong on purpose. A large organization had misplaced a piece of paper, which large organizations do every day. What turned it into one phone call instead of five was a line in a notebook that gave her a date, an extension and a number she could search for.

The Letters gave me the right to ask. The log is what made the asking stick.

What changed when the clerk handed you the envelope

For weeks you've been the person named in the will, and every bank, insurer and government office has told you, politely, that this means nothing to them. Then the clerk slides the court's paper under the glass, you write the issue date on the front of the folder as Chapter 3 told you to, and the same people start taking your calls.

That's the whole change, and it's a big one. You can now ask institutions to deal with you about property the court has put in your care.

If the house still isn't locked up, the mail isn't reaching you, or nobody has told Social Security, that first-weeks work is covered in the series' book on the first ninety days, and it comes before anything here. This chapter starts where the court's authority does.

Before you call anyone, read two papers you already have. One is the court's order appointing you, which in California is the Order for Probate from Chapter 3 and in your state may have another name. It lists what you're allowed to do. The other is whatever tells you whether you have independent or supervised authority, which Chapter 3 told you to ask about. Those two decide how much of what follows you can do on your own and how much waits for a judge.

Authority isn't permission to hurry

Here's the feeling that arrives with the Letters, and I had it too: now that I'm allowed, I should get on with it. Close the accounts. Sell the car before the battery dies. Give Mom's ring to the granddaughter who always admired it, because everybody agrees she should have it.

Don't.

You're still in the first of the three steps from the introduction, collecting. Nothing leaves the estate yet. Not money, not the car, not the ring, and not the fishing boat your brother says Dad promised him. "She would have wanted me to have this" is not a legal category, even when it's true, and even when the "me" is you.

Leave the accounts open, too. An open account keeps producing statements, and statements are evidence. Chapter 5 gathers the money into one place in a sensible order. Closing things early, before you know what pays into them, is how a pension deposit bounces or an automatic payment you didn't know about stops a policy.

Selling is a separate question with a sharper edge. Whether you can sell estate property without a judge signing off first depends on your state and on the kind of authority your order gives you. Read the order and the Letters first. If they don't answer whether you may sell, ask the estate's lawyer before you list anything, and write the answer down with the date and the name of whoever gave it.

Bills wait for Chapter 7. The exception is anything that keeps property from losing value: an insurance premium, a furnace repair in January, the electric bill that keeps the pipes from freezing. If something like that can't wait, read your order again. If it doesn't plainly cover the payment, ask the estate's lawyer whether you have the authority and what you may pay it from. Note the answer and keep the receipt.

One institution at a time, in writing

Start with the authority check from Chapter 2. Every “yes” line on it is an institution holding property the court has now put in your hands. Those are your calls. The “no” lines stay on the outside-the-estate page, and the Letters don’t change that. A brokerage account that pays to your sister on death is still your sister’s business, whatever the court has said about you.

For each “yes” line, phone first. Ask where to send things, what they’ll need, and the keep-or-return question from Chapter 3. Ask, too, whether there’s an age limit on a certified copy they’ll accept, because a copy the court sealed in January may not satisfy someone in May.

Then put the request in a letter, even if the person on the phone says you don’t need to. A phone answer lasts as long as the call. A letter has a date on it, and you have a copy.

Keep the letter short. Who you are and that the court appointed you. The person’s full name and date of death. The account’s last four digits, never the whole number. A copy of your Letters, or a certified one if they said so. Then the asks, numbered so they can’t skip one:

1. Please freeze this account or retitle it in the estate’s name, whichever your procedure requires, and tell me in writing which you’ve done.
2. Please send all future statements and correspondence to me at the address below.
3. Please tell me in writing the balance on the date of death.
4. Please list anything else you need from me.

The third one is a favor to your future self. The inventory in Chapter 6 runs on date-of-death values, and it’s far easier to get that number now, while you’re already on the phone, than to circle back in three months.

Expect to be asked for a death certificate, your own ID, and sometimes the estate's tax number before they'll retitle anything. That number is Chapter 5. It's fine to say you'll have it within the week and ask them to freeze the account in the meantime. What isn't fine is letting a helpful voice talk you into closing the account and mailing a check made out to the estate before the estate has anywhere to put it.

Now and then an institution won't honor the Letters, or wants something you can't produce, or keeps changing its answer. Ask for the refusal in writing. Then take it to the estate's lawyer. A written no is something a lawyer can work with. A shrug on the phone isn't.

Mail anything that encloses a certified copy in a way that gives you a receipt. That's how my line on January 10 ended with "receipt stapled behind," and why the woman at the second bank had something to search for.

Send it so you can prove it.

The insurance call, this week

The house is empty. The car hasn't moved since the funeral. Both are insured in the name of someone who has died, and some of the most expensive surprises in this job begin right there.

Call the agent or the company this week. Say who died, that the court has appointed you, and that you're sending your Letters. Bev's insurer, as you saw in Chapter 3, held on to one of my certified copies before adding the estate to the policy. Yours may want something different. What an insurer needs from a fiduciary isn't standard, so don't guess at it and don't rely on a cheerful "you're fine" over the phone.

Ask these in writing and get the answers back in writing:

1. Is the property covered today, and on what terms?

2. Does the policy say anything about a house standing empty, and if so, what?
3. Can the estate, or I as its representative, be named on the policy, and what do you need to do that?
4. When is the next premium due, and where should the notice go?

Ask the same about the car. While you're at it, take the keys off the hook by the door. A nephew offering to "keep the battery up" by driving it to work is a kind offer and an insurance question nobody wants to answer after a fender bender.

If the insurer says there's no coverage, talks about canceling, or something has already happened, a pipe that froze or a window someone broke, call the estate's lawyer that day. Property sitting uninsured in your care is exactly the kind of loss you'd someday have to explain to a judge or a beneficiary, and a lawyer can tell you what your state expects you to do about it.

Two IRS forms that do different jobs

The IRS needs to know you exist, too.

Form 56, Notice Concerning Fiduciary Relationship, is how you tell it. The IRS's page for the form, last reviewed in August 2026, says it notifies the agency when a fiduciary relationship is created or ends. The instructions, revised June 2026, add the part that matters this month: generally, you file it when the relationship is created. They also say something worth reading twice. The IRS treats a fiduciary as if the fiduciary were the taxpayer, so the returns and the taxes due become yours to handle on the person's behalf. Chapter 8 deals with what those returns are.

A few practical points from those same instructions:

You file a separate Form 56 for each person you act for. In practice that's usually two. One names the person who died, for the

final personal return. The other names the estate, which is a separate taxpayer.

The one for the person uses their Social Security number. The one for the estate uses the estate's own tax number, which you won't have until Chapter 5, so that form can wait a week or two.

If a court appointed you, will or no will, you attach your current Letters, or a court certificate, as proof.

It goes to the IRS service center where the person you're acting for files returns. For the person who died, the Form 1040 instructions list that address.

You sign it under penalty of perjury. Read each line before you do.

Form 56 doesn't change any address. Its instructions say so outright. For that, the IRS's "Information for executors" page, last reviewed in September 2026, points to Form 8822, which changes the estate's address of record. The person filing it must be the executor or someone with authority to act for the estate, and the IRS says that can include a fiduciary who has already submitted Form 56. It also says to allow 4 to 6 weeks for the change to go through.

Form 56 is not an address change, and Form 8822 is not a substitute for telling the IRS you're the fiduciary. They do different jobs, so don't assume one unlocks the other. If you're acting on fiduciary status rather than on a court appointment, read both sets of instructions and work out whether the IRS wants the Form 56 in first. Either way, allow the four to six weeks, and expect letters to keep going to the old address until the change takes. One more reason the first-weeks mail work matters.

This is a book, not a tax preparer. If the person ran a business, had rental property, left unfilled returns, or the IRS was already writing to them before they died, bring in a CPA now rather than in March. Read the form's instructions yourself either way. They're short, and they're the source.

The money notebook, now under oath

From the day you hold Letters, everything you write about money is heading toward a reckoning. California calls it the final account, and it can be waived if every person due a share signs a written waiver. Your state has its own version. That account gets built from what you record this month, not from what you remember next year.

The money notebook from the introduction doesn't change shape. What changes is who may read it. Before, it was your own list. Now every page needs to make sense to a judge, a beneficiary, or a brother who has decided to be suspicious.

So write down everything. The certified mail receipt. The certified copies. The parking at the courthouse. If you think you might ask to be repaid for driving, write the miles and the reason for every trip on the day you make it. Whether your state allows mileage at all, and at what rate, is a question for the estate's lawyer before you count on it.

My own habit was fifteen minutes every Sunday night, catching up the notebook and the log from the week, with the receipts in an envelope clipped inside the back cover. That's my habit, not a rule. The rule underneath it is simpler. Nothing gets reconstructed later.

Write it the same day.

The institution log

The phone log you started with the introduction had four columns: when, who, what was said, and what they wanted back. From the day the Letters arrive, rule four more. Together the eight look like this:

1. **Date and time.** The actual time, because "Tuesday morning" is useless in March.
2. **Who.** A name, or at least a first name, plus the department and a direct line or extension.
3. **What they told you.** One line, in their words where it matters.

4. **What they asked you to send.** And by when, if they gave a date.
5. **Institution and account.** Last four digits only. This page will sit on your kitchen table.
6. **What you sent or showed, and how.** Letter, certified copy, in person, certified mail. Note whether they kept the certified copy.
7. **Reference number.** Theirs, plus your mail receipt number if you have one.
8. **Follow-up date.** When you'll call if you hear nothing. When the item is finished, write "closed" and the date here instead.

Three habits keep the log honest. One line per contact, written that day, including the follow-up calls, which get their own lines rather than squeezed notes in the margin. Any line whose follow-up date has passed gets a phone call before anything else that morning. And if you couldn't read a line aloud to a stranger and have them find your file, it isn't finished yet.

That last test is the whole point. The woman at the second bank didn't need my feelings about her bank. She needed a date, an extension and a reference number, in that order, and the log had them.

Before day thirty

Somewhere in this first month, hold what you've done up against your own state. The probate pages on your state court's website will tell you what usually comes next. Then phone the county probate clerk and ask item ten from the Chapter 3 checklist a second time, in its appointed form: which filings are due from me now, and on what dates? Some of those dates may count from the issue date on the front of your folder. Your inventory deadline, in particular, is set

locally, and Chapter 6 shows you how to meet it. Write the date the clerk gives you next to the Letters date, with the clerk's name.

For local forms and filing dates, follow the court's current written instructions and confirm them with the clerk. For what you're allowed to do, what you could be held liable for, or two pieces of legal advice that don't agree, stop and ask the estate's lawyer.

The woman at the second bank called me once more that winter, in March, to say Bev's savings account was in the estate's name and the statements would come to me. It took her under a minute.

Log the callback.

Chapter 5: The EIN and the Estate Bank Account

The woman behind the desk at the bank downtown was perfectly nice about it.

It was a Tuesday morning, the sixteenth of January 2024, and I had come in with what I was sure was everything. The court's Letters with the raised seal, Bev's death certificate, my driver's license, the white binder with Dale's tabs in it.

She read the Letters all the way through, which I appreciated, and then she turned her monitor a quarter inch toward herself and said, "And do you have the tax ID for the estate?"

I said Bev's Social Security number was on the death certificate.

"Not hers. The estate's."

I drove home. Forty minutes of driving, round trip, plus twenty in the lobby, for a conversation that could have happened on the telephone in four. That afternoon I applied online, printed the letter twice, and came back Thursday. The same woman opened the account in about half an hour and asked after the weather.

Nobody had done anything wrong. I just hadn't understood a thing that the rest of this chapter exists to explain.

The estate is a taxpayer, and it isn't you

Here's the piece that reorders how you think about the next year.

Bev's own last personal return still covers what she received up to the day she died. At death, the estate's separate tax year also begins for post-death income. The IRS's own instructions for Form 1041 put

it plainly: for a decedent's estate, the moment of death ends the person's tax year and begins the estate's. The estate is a separate entity for federal tax purposes, formed by the death itself.

Separate from her. Also separate from me.

That's why her Social Security number wouldn't do, and why mine would have been worse. A new taxpayer needs its own number, and for an estate that number is an EIN, an employer identification number. An EIN identifies the estate for federal tax purposes. It does not mean the estate has employees, though an estate that employs workers can have separate employment-tax obligations; ask the CPA about any worker the estate pays. The IRS page on filing an estate income tax return, last reviewed in April 2026, says it straight out: before you file an estate income tax return, you need a tax identification number for the estate. The Form 1041 instructions go further. Every estate required to file that return must have one.

Whether your estate will have to file is Chapter 8's business, and the answer turns on how much income it takes in. But notice the order of operations, because it's the trap. You find out whether you need to file a return months from now. Get the EIN promptly. A bank may require it before opening an estate account, so call the branch first and ask what it needs.

Get the number first. Sort out the return later.

Getting it: Form SS-4, free, and fast

The form is Form SS-4, Application for Employer Identification Number. You can fill it out online and the IRS gives you the number at the end of the session, immediately, if the application goes through.

It costs nothing. I want to say that twice, because people lose money here. The IRS's own page warns readers to beware of websites that charge for an EIN, and says you never have to pay a fee for one.

If you search for this and land somewhere that wants forty dollars to “file your EIN,” close the tab. Go to irs.gov and start from there.

Now the practical traps, all from the IRS’s page on getting an EIN, last reviewed in August 2026, and the Form SS-4 instructions revised December 2025.

You get one session. The online application cannot be saved and resumed. It expires after fifteen minutes of inactivity and you start over. So don’t open it until you have the papers in front of you and twenty quiet minutes. I did mine at the kitchen table with the folder open and the phone face down.

The tool keeps hours. Eastern time: Monday through Friday from 6:00 a.m. until 1:00 a.m. the next day, Saturday from 6:00 a.m. to 9:00 p.m., and Sunday only from 6:00 p.m. to midnight. A government website with a closing time surprises people. Plan around it rather than discovering it at ten on a Sunday morning.

One a day. EINs are limited to one per responsible party per day, and the instructions add a detail that matters for us: for estates, that limit is applied to the person who died. One estate, one EIN, one day.

Apply once. If you think the session failed, stop and find out before you try again. An EIN, once assigned, is the entity’s permanent federal taxpayer identification number. The IRS page on no longer needing an EIN, last reviewed in November 2025, says it cannot be canceled. The agency can close the account, on a written request, but the number itself doesn’t go away. Two numbers for one estate is a mess you’d rather not make.

If you can’t use the online tool, Form SS-4 also goes in by fax or by mail, and the current instructions give the numbers and addresses. Expect it to take longer. Read the instructions for the method you choose, since they change.

The six lines on that form that are about you

Most of Form SS-4 is for businesses, and you'll be writing "not applicable" more often than not. Six entries actually require a decision, and the instructions tell you what each one wants.

The estate's legal name goes on line 1. If the estate has no legal name of its own, the instructions say to enter the name of the person who died followed by the word "Estate."

Line 3 is the care-of line. For an estate, that's the executor, administrator or personal representative. Your name goes there, and the mailing address on the next lines is yours, not the empty house's, because that's the address the IRS will use.

Line 7 asks for the responsible party. For a decedent's estate, the instructions name the executor, administrator, personal representative or other fiduciary, and the number beside it is your own Social Security number. Reading that line was the moment the job got personal for me, and I'd had the Letters for a week.

Line 9a is the entity type. You check Estate, and the number you enter in that space is the Social Security number of the person who died. This is where mine goes in and hers goes in, in two different boxes, for two different reasons.

Line 11 wants the date the business started or was acquired. For an estate, the instructions say to enter the date of death of the person named on line 1, or the date the estate was legally funded.

And line 12 asks for the closing month of your accounting year, which looks harmless and isn't. December gives the estate a calendar year. Another month gives it a fiscal year. People agonize at that screen, so here's the relief: the Form 1041 instructions say the executor chooses the estate's tax period when filing its first income tax return. The first tax year may be any period of twelve months or less, ending on the last day of a month. The decision has real tax consequences for the beneficiaries, and it belongs to a CPA, not to a

book and not to a dropdown. Chapter 8 gives you the question to ask. Ask it before that first return, not before this form.

Then you sign. The instructions say that for an estate the application is signed by the fiduciary, which is you.

One more thing, for the small number of readers it will save. If a return or a deposit comes due before the number arrives, the instructions say to write “Applied For” and the date you applied in the space for the number, and never to put a Social Security number there instead.

Print it twice

When the session finishes, the screen offers you the EIN confirmation letter. Print two copies and save the file somewhere you’ll find it.

One copy lives in the folder, behind the Letters. The other goes in the envelope you take to the bank, and you will be asked to hand it over.

Then write the number on the inside front cover of the money notebook, near where you keep the dates that matter. The nine-digit number identifies the estate to the federal government. You’ll be asked for it by a bank, a brokerage, an insurer, a CPA and at least one person on hold music.

Keep it where you can find it at eight at night.

The bank: call the branch first

Then open the account, and save yourself my Tuesday by telephoning the branch before you drive anywhere.

Ask what the bank requires to open a decedent’s estate checking account, and whether the branch you’re calling can do it or whether it goes to a department somewhere else. Ask whether an

appointment is better. Ask who you'll be sitting with. Then log it the way Chapter 4's institution log wants it logged, with the name and the extension, because if the answer turns out to be wrong you want to know whose answer it was.

What they'll want is some arrangement of five things: a certified copy of your Letters, the EIN confirmation letter, your own photo identification, the death certificate, and the estate's mailing address. Banks differ on the details and on whether they keep a certified copy, which is why Chapter 3 told you to count more copies than you thought you needed.

While you're there, settle five more questions and write the answers down.

Order checks, and look at what gets printed on them. You want the estate's name on that line, not yours.

Ask about the monthly fee and the minimum balance, and ask what happens to both when the account sits at three hundred dollars for the last two months of the case.

Ask who is authorized to sign. For most estates that's one person, which is you. If you're serving with a co-executor, say so at the desk and find out what the bank requires of the two of you, because a bank's rule and your court's rule are separate things and you want them pointed the same direction.

Ask how statements come, and get them on paper if you have any choice. The final accounting at the end of this job is built out of statements, and a login you'll forget is not a record.

And ask whether the bank wants Form 56 from you. If Chapter 4's Form 56 applies to the estate, finish the estate copy after the EIN arrives; Chapter 4 has the instructions.

If a bank won't open the account, ask for the reason in writing, then bring it to whoever is advising the estate. A written refusal is something a lawyer can act on, and some banks simply don't do estate accounts at a branch counter.

Everything in, everything out, nothing personal

Now the rule that this whole chapter was built to deliver, and the only one in the book I'd put in capital letters if the publisher let me.

From the day that account opens, every dollar that belongs to the estate goes into it, and every dollar the estate pays goes out of it. Nothing personal touches it, in either direction, not once, not for an afternoon, not to be sorted out later.

Not your own money, lent to the estate to cover a bill you're in a hurry about. Not the estate's money, moved to your checking account because the transfer was easier than waiting for checks. Not the hundred dollars a cousin handed you at the funeral toward the headstone. Not a refund check you deposited at the drive-through on a Saturday without looking at the payee line.

Keeping the money separate is one of the four fiduciary duties from Chapter 1, borrowed from the CFPB's guides. Of the four, it's the one with the sharpest edge, because mixing the money is the mistake that converts a hard job into an accusation. Not because you stole anything. Because once the two sets of money have touched, there's no document left that proves you didn't, and the person asking the question in eight months may be a brother with a lawyer.

The test is a single question, and I used it for fourteen months: could a stranger, with the statements and the notebook and nothing else, see where every dollar came from and where it went?

If not, don't do it.

Paying yourself back, the boring way

You've been out of pocket since before you were appointed. The filing fee, the certified copies, the certified mail. Chapter 1 told you to write down every dollar and the intro gave you the notebook; this is where that comes due.

Do it as its own transaction, visible on the statement. A check from the estate account, made out to you, with a line in the notebook that says what it repays and the date of the original payment, and the receipt filed behind it. One check per batch, or one per item if your state's accounting is fussy, but never a withdrawal without a paper reason.

Never cash. Never a transfer with no note. Never netting it against money coming in, which is the quiet version of the same error: if a refund of \$380 arrives and you're owed \$380, deposit the refund and write yourself a check. Two lines on the statement, not none.

And before you reimburse anything unusual, read the Chapter 1 ledger again. Reimbursement can depend on your state's rules, on whether the expense was necessary, on documentation, on court approval, and on there being money left. California's self-help guide says costs are typically repaid from the estate; typically is not always. When I had a payment I couldn't classify, I asked Sam, who charged me for six minutes and saved me an argument.

If you're ever unsure whether something is the estate's expense or yours, pay it from your own pocket, document it, and ask before reimbursing. That order is reversible. The other one isn't.

Moving the money in, in the right order

Now bring the estate's cash together, and do it in an order that doesn't break anything.

Start with the accounts marked yes on the Chapter 2 authority check. One at a time, with the letter and the date-of-death balance you already asked for in Chapter 4.

Take the plain ones first. A savings account in the person's name alone, with nothing paying in and nothing paying out, closes cleanly and the money comes to the estate account. Good. Two lines in the log and move on.

Leave the checking account they actually used open for a while, and keep reading its statements. A pension deposit may still be coming. An automatic payment may still be going out, and one of them may be the insurance premium on the empty house. Chapter 4 told you not to close accounts early; this is the specific reason. You learn what pays in and out of an account by watching it for a cycle, not by asking the bank for a rundown.

A certificate of deposit may carry a penalty for early withdrawal, and it's worth one phone call to find out whether it matures before you need the cash.

As for the dead person's debit card, their autopay logins, and that recurring charge nobody recognizes: shut them down deliberately, one at a time, each with its own log line. Not in an afternoon of clicking.

Leave uncashed checks made out to the person who died alone until you've asked the bank what it will accept into the estate account and what it won't. Rules differ, and tearing up the wrong check is permanent.

One last thing, and it's why Chapter 8 exists. Any interest that account earns after the date of death is income of the estate, not of the person who died. A money market account with a real balance can generate enough of it to matter. So when the statement comes, note the interest in the notebook as the estate's income, and keep that figure where your preparer can find it next spring.

The envelope, in order

Before you drive to the bank, put these in one envelope, in this order, so you're not searching your coat pockets at the desk.

1. **A certified copy of your Letters**, with the court's raised seal.
Ask on the phone whether the bank keeps it.
2. **The EIN confirmation letter**. One of your two printed copies.

3. **A certified copy of the death certificate.** Bring two if you have them to spare.
4. **Your own photo identification,** and your Social Security number if you can recite it, because the bank is opening an account you will sign on.
5. **The estate's mailing address in writing,** exactly as you entered it on Form SS-4. Yours, not the empty house's.
6. **The institution log and a pen.** The answers you get at that desk are the ones you'll be quoting in April.

Nothing else. No will, unless the bank asked for it on the phone. No binder of statements. A thin envelope and a short list of questions beats a briefcase every time.

When I got home from the second trip, Dale looked at the checkbook with the estate's name printed on it and said, "Well, now she's got a company."

Which is about right. For the next fourteen months, Bev's estate had a tax number, a bank account, an address and one employee who wasn't being paid.

Keep that account clean and Chapter 11's final accounting mostly writes itself.

Chapter 6: Finding Everything, and Writing It Down

I spent one Tuesday making eleven phone calls to find a single annuity of Bev's.

Not a big one, in the end. Eleven thousand dollars and change, bought back in 1998 from an insurance agent whose office had long since become a nail salon downtown. I found it because a forwarded statement sat in the pile for three weeks before I opened it. If I hadn't opened it, that annuity would simply not exist, as far as the court or anyone else was concerned.

The inventory is where you answer, in writing, under oath, what the estate owns. An omission may be an honest mistake, but a sworn filing still has to be corrected promptly under your court's procedure. The job of this chapter is to lower the odds of needing to.

A snapshot, not a running total

Start with what the inventory actually is. It's a sworn list of what the estate owned as of one date: the date of death. Not what it's worth today, not what came in since, not what you've spent since. A photograph, not a video.

That matters because people drift into treating it as a kind of estate diary, updating it in their heads every time something changes, and then wondering why the paperwork never matches what they're thinking. Keep the date fixed. Everything that belongs on this list belonged to the person the moment they died, no more and no less.

Where things hide

Most inventories are short on surprises and long on legwork. Here's where the legwork finds things.

The last three years of tax returns. Not because the returns themselves are assets, but because every 1099 attached to them names an account, a brokerage, a pension administrator, or a payer you'd otherwise never think to call. Bev's last return had a 1099-DIV from a brokerage I didn't know she used.

The statements that keep arriving at the estate's address of record. Chapter 4 told you to leave accounts open and watch what pays in and out of them. The forwarding itself, and the first few weeks of mail generally, are a different book's territory. What I'm pointing at here is narrower: once the mail is reaching you, read every piece of it as a lead, not a chore. A dividend notice. A renewal letter. A premium due date. Each one names something, and each something is worth one phone call before you decide it's nothing.

Bev's forwarded mail is also how I found a magazine subscription, a loyalty account at a hardware store with four dollars of credit on it, and the annuity. Only the annuity belonged on the inventory. I read all three anyway, because I couldn't tell which was which until I opened the envelope.

The safe deposit box. Banks handle access to a dead person's box differently, and some want the Letters before they'll let you in at all. Call first, and bring someone else along if your state wants a witness or an inventory of the box's contents made on the spot.

The insurance declarations page. Not just the policy that pays a beneficiary, which Chapter 2 already told you isn't the estate's to manage, but anything that insures property the estate does own: the house, the car, a stamp collection that got its own rider in 2009.

The pension from the job in 1987. People change employers, employers change names, and pension administrators change again

after that. If Bev's 1099 hadn't turned up a payer's name, I wouldn't have known to call.

The second bank from a town they left. Chapter 4's second bank, out by the bypass, was the one that lost my letter. It existed at all because Bev had banked there in the 1990s and never quite closed the account when she moved.

The storage unit, the garage, the junk drawer. Not every asset is a piece of paper. A coin collection in a shoebox, a gun safe, a stack of savings bonds from a grandchild's christening — these show up by looking, not by calling anyone. Walk the house once with a legal pad before anything gets moved or sorted, and write down what you see before you start deciding what to do with it. Bev's storage unit held, among the expected boxes of linens, a coffee can of silver dollars that never once appeared on a bank statement.

Anyone who handled the person's money before you did. A financial advisor, a tax preparer, a bookkeeper. They often know about an account or a policy that never generated a 1099 you'd have seen, because it hadn't paid out yet. One phone call to Bev's tax preparer from two years back turned up a second, smaller annuity I'd have missed entirely otherwise — the kind of find that makes the eleven calls for the first one feel almost efficient by comparison.

Searching for what nobody told you about

Some money belonging to an estate never sends a statement, because the institution holding it has already lost track of the owner.

There are two lanes here, and keeping them separate saves you from filing someone else's money on the estate's list.

The estate-asset searches you run yourself: each state's unclaimed property office, indexed by USA.gov, for every state the person ever lived in, not just the one they died in. TreasuryDirect's current savings-bond forms and claim instructions, for a lost, stolen,

destroyed, or unredeemed bond — Treasury Hunt was discontinued September 30, 2025, so any book or website still sending you there is out of date. The FDIC and the NCUA, each of which keeps records of what happened to deposits if a bank or credit union in the person's history failed. And the US Courts unclaimed funds locator, if bankruptcy ever touched their name.

The survivor-benefit searches belong elsewhere. Use *The First 90 Days After a Parent Dies* for PBGC pension, VA life-insurance, and other survivor-benefit searches. Bring every result back to Chapter 2's authority check; include it here only if the governing paperwork and professional advice classify it as estate property.

I worked the list for Bev on a Sunday evening at the kitchen table, mostly expecting nothing. Ohio's unclaimed property office had eighteen dollars from a closed utility deposit. Eighteen dollars. I reported it, because the rule I worked by was the plain one: report it if your state's form and instructions require it; do not omit it merely because the amount is small or a relative claimed it.

Valuing what you find

Once you've found it, you need a number as of the date of death, and the method is not yours to pick freely. Use the valuation method your court requires.

California's preliminary guide asks for a best estimate of date-of-death fair market value and does not require a formal appraisal at that stage, according to the California Courts self-help guidance on estimating the value of the estate. In formal probate there, the personal representative usually contacts a probate referee to value non-cash assets, which is why the Inventory and Appraisal separates what the representative valued from what the referee did. Other states order this differently.

So do not substitute a tax assessment or a trade-in figure unless the governing instructions or the appraiser says it is appropriate. A county tax assessment runs behind market value more often than it runs ahead, and a trade-in number is not necessarily what a car was worth the day somebody died. For a business interest, farm ground, a coin collection, anything with no public price, keep whoever valued it and their invoice with the inventory, because the court or the IRS may ask who valued it and how. The IRS uses fair market value at the date of death for gross-estate assets, which is a federal estate-tax principle and not by itself the filing rule for your state's court form.

Ask the clerk for the current form, instructions, filing method, and deadline. Ask the estate's lawyer which assets require a referee or a qualified appraiser and what valuation standard applies. Ask the CPA how the valuation will be used on tax returns.

Don't guess at a value to save a phone call. An undervalued house looks careless at best and self-serving at worst, especially to a sibling who's already watching for exactly that. An overvalued one can cost the estate money later, when it sells for less than the number you swore to. Get the real number, from someone qualified to give it, and keep the paper that shows how they got there.

If a business is involved — even a small one, even one that's basically a truck and a client list — stop and call a lawyer or a CPA before you put any number on the inventory at all. Valuing a business the person owned alone is a different, harder problem than valuing a house, and it's not one this book will walk you through.

Filing it

California's version is the Inventory and Appraisal, form DE-160, filed with the probate court. It's the named example in this book because California publishes its process clearly; your state's form will carry a different name and the same purpose.

What it won't carry, anywhere, is a single national deadline. I can't give you one, and any book that does is guessing. Ask your clerk when the inventory is due in your case, write the date on the front of the folder the way Chapter 3 had you write the Letters' date, and treat it the way you'd treat a tax deadline: on the calendar, not in your head.

When something turns up later

It will. An old annuity, a second will drawer nobody searched, a dividend check from a company that merged twice since the statement was mailed.

You don't start over. You amend. The procedure for amending an inventory is set by your court, and it exists precisely because nobody finds everything the first time. Call the clerk, ask what an amendment requires in your case, and add the item — late is not the same as wrong, as long as you correct it once you know.

What stays off the list, and why you track it anyway

Put on the filed inventory exactly what your state's form, instructions, order, and lawyer require. Do not assume every item that bypasses probate is omitted everywhere; court inventories and reporting requirements are set state by state, and characterization questions are not safely settled by a rule of thumb from a book. Chapter 2's authority check tells you what you have power over. It does not tell your court what belongs on its form.

Keep a separate private tax-information list for assets not reported on the court form. Not for the court. For yourself, and for Chapters 8 and 9, which need to know what the estate owned in the

broadest sense long before either tax chapter cares whether the court had authority over it.

The paper trail hunt

Fourteen places to look, roughly in the order that finds the most for the least driving:

1. The last three years of tax returns and every 1099 attached to them.
2. Mail reaching the estate's current mailing address, each piece opened and read.
3. The checkbook or check register, if one exists, for account numbers you haven't matched yet.
4. The safe deposit box.
5. Insurance declarations pages, filed by company, not by policy number you don't have yet.
6. A former employer's benefits office, for any pension or retirement account.
7. Any account statement older than a year, which sometimes shows an account that closed since.
8. The county recorder's office, for deeds in the person's name.
9. The county assessor, for a property tax bill that names an owner you didn't expect.
10. The state's unclaimed property office, for every state they lived in.
11. TreasuryDirect, for any savings bond that is missing or was never cashed. Use the site's current claim route, not the retired search tool.
12. The FDIC and NCUA, if a bank or credit union in their history failed.

13. The federal courts' locator for money left behind in a closed bankruptcy case.
14. Anyone who knew them well enough to ask, "Did she ever mention a second account, or a box somewhere?"

Work it once, in order, before you file. Then expect to amend anyway.

What the inventory is not

It is not a guess, and it is not a negotiation. I've heard of executors who left an item off on purpose because a sibling claimed it loudly and often, figuring it was easier to let the argument happen off the books than on it. Don't. The inventory is sworn, and the Ohio-deposit rule above still governs: a loud claim from a relative is not a reason to leave an item off a form that requires it. Chapter 10 handles who gets it after that, not Chapter 6.

It's also not the place to settle whether something is the estate's in the first place. That question belongs to the Chapter 2 authority check, and if a line there still says unclear, it stays unclear here too — sent to counsel, not guessed at because the inventory deadline is close.

Dale asked me, the week I made those eleven calls, why I didn't just let the small one go. I told him it wasn't about the eleven thousand dollars. It was about the one call I hadn't made yet.

Make it.

Chapter 7: Bills, Claims and the Word “No”

The hospital bill for Bev came in late March 2024, four months after we buried her, in a window envelope with a barcode along the bottom edge.

I was standing at the kitchen counter. I had the checkbook for our joint account out of the drawer before I’d finished reading the second line, because that is what thirty years of paying bills on time does to a person. Pen uncapped. Date written.

Dale came in for his thermos and looked at the envelope, then at the checkbook.

“Whose bill is that?”

Three words into my answer I stopped, put the pen down, and went to find the folder instead. That thirty seconds is the reason this chapter exists.

The estate owes it. You usually don’t

Start with the rule, because everything else in this chapter is a wrinkle in it.

A person’s debts don’t vanish when they die. According to the FTC’s consumer page “Debts and Deceased Relatives,” dated February 2023, those debts are owed by and paid from the dead person’s estate, and by law family members usually don’t have to pay them out of their own money. The FTC also says plainly that if there isn’t enough money in the estate to cover a debt, it usually goes unpaid.

The CFPB's current list of exceptions is longer than a quick summary suggests, and you should read it as a short checklist against your own situation rather than as background. You may be personally responsible if you cosigned the obligation, or if you're a joint credit-card account holder rather than merely an authorized user. You may be responsible as a surviving spouse where your state's law imposes responsibility for that specific debt, or as an executor or administrator where state law reaches property jointly owned with a spouse. You may also be responsible as a surviving spouse where applicable community-property law reaches property you held jointly. If you match any of these, take the contract and statements to a local probate or consumer lawyer before paying anything.

Read that last one twice. It's about you, in your job, this year. Everything that follows is built to keep you out of it.

Being the one who settles the debts is a different thing from owing them. The person currently authorized by the court or another valid state process handles estate debts; being named in the will alone does not supply that authority. Where there's no will, a court may appoint an administrator, a personal representative or a universal successor and give them that power, and in some states another process can make someone the estate's representative without a formal court appointment.

That hospital bill was Bev's. It was never mine. The envelope didn't know that, and neither did I, for about half a minute.

Telling creditors you're here

Your state may require publication for unidentified creditors and a separate, prescribed notice to known or reasonably ascertainable creditors. These are the legal notice steps, not the only ways a creditor may hear about a death.

California is the worked example this book keeps coming back to, and its formal-probate overview is blunt about the duty. The personal representative must give formal notice to creditors using the Notice of Administration to Creditors, form DE-157. The California Courts self-help description of that form says it tells creditors who has been appointed, that the representative has started managing the estate, how and when to make a claim, and what may happen if they don't file a claim on time.

Those last two parts matter more than the rest. A notice that starts a clock is only useful to you if you know what the clock says.

And here I have to disappoint you, deliberately. There is no national creditor-claim window. I looked for one that I could stand behind in print, from an official source, and it does not exist, because the period is set by state law and the periods differ. Some are counted from the day notice is published. Some run from the day a known creditor is actually notified. Some run from the appointment. A book that hands you one number for all fifty states is guessing, and the consequence of a wrong guess lands on the person holding the Letters.

So the number comes from two places, and neither of them is me. Read the current probate pages your own state's courts publish. Then confirm what you read with the clerk's office handling your case. Ask for the claim period, ask what starts it running, and ask what form the notice takes where you are. Write the answer and the date beside it in the folder.

The second half of the notice job is the known creditors. Publishing in a newspaper reaches the creditor you've never heard of. It does nothing useful for the card company whose statement is sitting in your mail pile with the account number printed on it. Those you notify directly, by the method your state prescribes, and you keep proof you did it. Every one of them goes in the institution log

from Chapter 4, with the date mailed and the receipt number stapled behind.

Why the first bill shouldn't be paid first

The instinct that had me reaching for a checkbook is the single most expensive instinct in this job.

Here's the shape of the problem. Bills arrive in the order the postal service delivers them, which has nothing to do with the order the law says they get paid. Pay the one that arrived Tuesday, and you may have spent money that a different claim was legally entitled to. If the estate later runs short, the creditor who should have been paid is not going to take "it came in first" as an answer, and the FTC's fourth exception is sitting right there.

So the sequence is: collect, learn, then pay. Collect every bill and claim into one place. Learn your state's rules on timing and ranking. Then pay, in whatever order the law and the court set.

Collecting is the easy part and it starts today. Every bill, statement, collection letter and demand goes in one envelope, unpaid, in the order it arrived, with the date you received it written in the top corner in pencil. Nothing gets thrown out, including the ones you're sure are wrong. The ones you're sure are wrong are often the most important to keep.

Some payments, though, cannot wait for the whole claim period to run, and a flat "pay nothing" rule would be its own kind of malpractice. The house insurance renews. The court wants its filing fee. The lawyer and the appraiser send invoices for work that keeps the case moving. State law may permit or require certain categories to be paid earlier, and the categories vary. Those are authority questions, not procedure questions, which puts them where Chapter 4 put every authority question: in front of the estate's lawyer, with the court's order and your Letters on the desk. The clerk can tell you

which form and what deadline. The clerk cannot tell you that a payment is safe.

Ask before you pay.

Making a claim prove itself

A bill in an envelope is an assertion, not a fact. You're allowed to ask it to prove itself, and in dealing with debt collectors you have specific federal rights while you do.

Ask one threshold question before any of this applies: is this an FDCPA-covered debt collector — a collection agency, debt buyer or collection lawyer — rather than the original creditor billing you directly? The federal rules below generally cover collectors handling personal, family or household debt; they generally don't cover the original hospital or lender, and they don't cover business debt. For an original creditor, request documentation anyway, but don't expect the federal clock to apply, and check your state's own rules.

When a covered collector is involved, the FTC sets out who it may even discuss a dead person's debt with. The spouse. The parents of a deceased minor child. A legal guardian, the lawyer, and the executor or administrator or personal representative with power to pay debts from the estate. A confirmed successor in interest. Anyone else, the FTC says, the collector may not discuss the debt with at all. Collectors may contact other relatives, usually once, only to get the representative's contact details, and may not discuss the debt with them.

Which means that when your cousin calls to say a collector phoned her about Bev's card, the collector has already stepped past a line. Tell your cousin to give them your name and nothing else.

The FTC also says a covered collector generally has to give you validation information about the debt, either during its first phone call with you or in writing within five days after first contacting you,

subject to the regulation's exceptions. That information includes who the collector is, how much is owed broken out into interest, fees, payments and credits, and the name of the creditor. It also includes what to do if you don't think it's your debt, and your debt collection rights. The same page says collectors can't contact you before 8 a.m. or after 9 p.m. unless you agree to it.

Then the part I'd tattoo on the inside of the folder. It comes from the CFPB's page "Am I responsible for my spouse's debts after they die?", last modified September 22, 2026. Dispute a debt in writing within 30 days of the validation notice, and the collector must stop contacting you until it verifies the debt in writing.

In writing. Within thirty days. Not a phone call where a pleasant person agrees with you and makes a note.

What you're asking for, in practical terms, is the account history: when the account opened, what it was for, what was charged and when, what was paid, and how the number on your envelope was arrived at. Twice in Bev's estate that request produced a smaller number than the one first demanded. Once it produced nothing at all, and I never heard from that company again.

Who gets paid first is not yours to decide

When there's enough money for everybody, the ranking question never comes up. When there isn't, it is the whole game.

Priority classes and their caps are state law. I'm not printing a list of classes, and I'm not printing an order, not even as a rough shape, because I couldn't verify one that holds nationally and a plausible-sounding wrong order is worse than no order at all. Get the current statute, or get written advice from the estate's lawyer, before you pay competing claims. That instruction is the content. There isn't a shortcut hiding behind it.

California's formal-probate overview puts the condition in six words that are easy to skate past: if there is money to pay the estate's debts, the representative will pay the debts from the estate. The whole chapter lives in that "if."

When there isn't enough

This is the clearest stop-and-hire-a-lawyer moment in this book, and I'd rather say so at the top of the section than bury it at the bottom.

If the claims against the estate look like they may exceed what the estate holds, stop paying anything that isn't already authorized, and get a probate lawyer engaged, paid from estate funds where your court allows it. Not a consultation someday. This week.

The reason is arithmetic plus exposure. The CFPB says that if there is no money or property left in an estate, or the estate can't pay, the debt generally goes unpaid. It gives the example of a state whose law requires the estate to pay survivors first, leaving nothing for debts. So an insolvent estate is a known situation with a legal shape, not a disaster you caused. But the FTC's fourth exception means the person who hands out that insufficient money in the wrong order can end up personally on the hook. The estate's insolvency is not your fault. Mishandling it could be your bill.

You'll also meet claims in this zone that are nothing like a credit card. State Medicaid programs may seek recovery against an estate after a death, and the rules and the exceptions belong to each state's Medicaid agency. If a notice of that kind arrives, send it to the lawyer and call the agency named on the letter, rather than deciding on your own what it means.

A thin estate is the one job in this book I would not do alone.

The calls that start after the obituary

Bev's obituary ran in the paper, as obituaries do, and the calls started inside two weeks.

The CFPB has a page on exactly this, "Is it a scam if a debt collector calls me after seeing my relative's obituary?", last reviewed September 24, 2024. It says some scammers read obituaries and other legal notices, then contact relatives posing as debt collectors to collect money or harvest personal information for identity theft. Its practical test is the one I used. A legitimate collector generally has to give you details about the debt in the first conversation or within five days. If a caller knows you're the personal representative and still won't give you those details, the CFPB says you may be dealing with a scam.

The CFPB's other instruction is the one to repeat out loud before you answer the phone this week. Don't give anyone your Social Security number, your date of birth or financial account numbers unless you know who you're dealing with.

I developed one sentence for those calls and used it maybe a dozen times. "Send it to me in writing at the estate's address, and I'll look at it." Then I hung up. Nobody who was real ever objected, and most of the others never wrote.

The three that keep running

While you're collecting and learning, three categories do not pause politely to wait for you.

A mortgage on a house the estate holds keeps accruing, and the lender's rights in that house are a different animal from an unsecured claim. A car loan does the same. Utilities on a property the estate is responsible for keep the pipes from freezing and the sump pump running, and letting them lapse can turn a house into a smaller asset in one cold week.

None of that makes paying them automatically your call. It makes them the first things on the list you take to the lawyer, with the question phrased as authority rather than advice: do I have the power, under the order appointing me and my state's law, to keep these current, and from which funds. Get the answer in writing if you can, and write the date beside it either way.

Bev's house sat empty and insured through that winter, and the heat stayed on at fifty-five degrees the whole time. For Bev's estate, Sam confirmed that keeping the heat at fifty-five degrees was an authorized property-preservation expense, paid from the estate account.

The claim triage sheet

One page per bill. Five questions, in this order, before any money moves.

1. Whose debt is it? The dead person's, a joint debt, or one of the CFPB's exceptions that could make it personally yours. If it's possibly yours, that goes to the lawyer before anything else happens.
2. Who is asking, and have they proven the debt? First note whether this is an FDCPA-covered collector or the original creditor. For a covered collector, note whether validation information arrived on first contact or in writing within five days, and the date you sent any written dispute, counting the thirty days.
3. What kind of claim is it? Secured against specific property, an expense of administering the estate, a tax, or an ordinary unsecured claim. Write what you think and underline the word "think."
4. Did this creditor get proper notice, and when does the state's claim period end for it? Enter the date the clerk or the lawyer

gave you, with their name beside it.

5. Who authorized payment, and from where? A court order, written advice from the estate's lawyer, or nothing yet. If it's nothing yet, the bill goes back in the envelope.

The decision rule has one line. Do not pay ordinary unsecured claims until you've identified your state's claim deadline and its priority rules, and continue only those payments that a court or a professional has confirmed: administration costs, taxes, secured obligations, and what's needed to preserve property.

Keep the sheets in the order the bills arrived. When the lawyer asks what's outstanding, you hand over the stack instead of reconstructing four months from memory.

What happened to Bev's bill

I called the hospital's billing office the day after Dale asked his question, told them I was the appointed personal representative, gave them the estate's mailing address, and asked for the account history in writing.

It came in nine days. Two of the charges had already been covered and the balance was smaller than the first notice said. I took the corrected statement to Sam, who looked at it for less time than it took me to explain it, told me where it sat among Bev's other claims, and said to pay it from the estate account once the claim period had run.

So I did, months later, with a check that had the estate's name printed on it.

The money came out the same either way. What would have been different is who paid it, what I could prove, and whether a creditor with a better claim had a reason to come looking for me afterward.

Put the pen down first.

Chapter 8: The Final Return and the Estate Income-Tax Return You May Need

Sam had a folder on his desk with a sticky note that just said “TWO RETURNS,” in block letters, underlined twice.

“People hear ‘taxes’ and think one form,” he told me, somewhere in the second month of Bev’s estate. “There are two different taxpayers here. Bev, for the part of the year she was alive. And the estate, for everything that happened to her money after she wasn’t.”

I wrote that down. Then I asked which one I was supposed to do first, and he said “both, eventually, and not the same way,” which was not the answer I wanted that morning.

Two taxpayers, two returns

Keep the two returns on separate lines in the folder.

The first return is the decedent’s own final income tax return — Form 1040 or 1040-SR, the same form they’d have filed if they’d lived the whole year. The IRS’s instructions for this are direct: prepare it the way you’d prepare it if the person were alive, reporting income only up to the date of death. If prior years went unfiled, those may be owed too, and you’ll want to know that early rather than finding out from a notice.

The second return, if the estate needs one, is the estate’s own income tax return, Form 1041. That’s a different return for a different taxpayer. The estate is a separate legal entity from the

person who died and from you, the way Chapter 5 explained when you got its EIN. It files its own return, under its own name and its own number, for the income it earned after death — interest on the account you opened, dividends that kept arriving, rent on a house still sitting in the estate’s name.

Different forms. Different taxpayers. Put each deadline on the calendar separately. If you remember nothing else from this chapter, remember that the sticky note was right.

The final 1040: finishing what Bev started

The final personal return covers January 1 through the date of death, same deductions and credits available, same forms used for whatever kind of income she had. The person preparing it — you, or more likely a CPA working from your folder — treats it exactly like an ordinary return for a year that happened to end early.

One complication worth expecting: interest and dividend statements. A payer may not split a 1099 at the date of death. A Form 1099-INT or 1099-DIV issued in the decedent’s name may lump together interest or dividends earned before death with interest or dividends earned after death that actually belongs on the estate’s return. The preparer reports the full amount on the decedent’s final return, subtotals it, then backs out the portion that belongs to the estate and notes where it’s going instead. IRS Publication 559 — the agency’s own guide for people doing exactly this job — includes a worksheet built for reconciling those split amounts between the two returns. If your CPA mentions “nominee income” or asks for every 1099 issued in Bev’s name for the year she died, this is why.

If there’s a refund coming on that final return, it’s often claimed with Form 1310, the Statement of Person Claiming Refund Due a Deceased Taxpayer. There’s a practical trap in it: a refund check can come back made out to someone who’s no longer here to deposit it,

and sorting that out with the bank is one more reason an estate account stays open longer than you planned for. If a refund is due, have the preparer check the current Form 1310 instructions. The IRS uses Form 1310 for many refund claims after a death, but the required paperwork depends on who is filing and whether the court appointed a personal representative.

Does the estate need its own return?

Not every estate does. The question has a real answer, and the answer lives in the current Form 1041 instructions, not in a general impression someone has from a different year's estate.

For the 2025 tax year, the IRS's instructions for Form 1041 set out three filing triggers for a domestic estate. Gross income of \$600 or more for the tax year is one. A beneficiary who is a nonresident alien is another. Holding a qualifying investment in a qualified opportunity fund during the year is the third. Any one of the three is enough on its own to require a return. Because the test is gross income rather than net income, check every source of post-death income against the threshold — a single year of interest on an ordinary savings account can clear it.

Here's the part I want you to sit with for a second. These instructions get reissued every year, and the rules inside them can shift. The IRS's own summary page for executors still gets quoted as saying "more than \$600" with no other conditions. That isn't quite what the current instructions say once you add the nonresident-alien trigger and the opportunity-fund trigger. Have whoever prepares the estate's return check the current year's Form 1041 instructions directly, not a page remembered from a prior filing season or a summary written for a different year. A rule that was accurate two years ago can be incomplete this year, and nobody wants to find that out from a notice instead of from a preparer.

When it's due, and what buys you time

A calendar-year estate, running January to December, files Form 1041 and the attached Schedules K-1 by April 15 of the following year. A fiscal-year estate files by the 15th day of the fourth month after its tax year closes. Have the CPA identify the estate's actual closing date before calendaring the return.

For a nonbankruptcy estate, a timely Form 7004 provides an automatic five-and-a-half-month filing extension, an easy number to misremember and an easy one to get burned by if a deadline matters down to the day. And an extension to file is not an extension to pay. The IRS charges interest on tax that isn't paid by the regular due date whether or not you filed for more time to get the paperwork together.

If the estate expects to owe tax year over year, it may also need to make estimated payments, the same way a person with income outside a paycheck does. That's a calculation, not a guess, and it belongs with whoever is doing the return.

The decision nobody tells you is a decision

Somewhere in opening the estate's first return, someone has to pick its accounting period. Calendar year, matching January to December, is one option, and it's the one a reader can pick without noticing a choice was made. A fiscal year is the alternative, within the limits line 12 of the SS-4 already put in front of you in Chapter 5. The Form 1041 instructions say the executor makes that initial choice with the estate's first income-tax return, and that a later change of accounting period requires Form 1128. So it is a choice, not a lock, but changing it is its own filing. This is a CPA's question, not a form to fill in on your own on a Sunday night.

Why would anyone pick anything else? Timing income and deductions across two different tax years can change what gets taxed

when, sometimes meaningfully. This is exactly the kind of choice that looks like a dropdown menu and is actually a real decision with real consequences down the road. Bring it up in your first conversation, not your last.

The estate also needs its own EIN before any of this starts, which Chapter 5 already walked you through. If you skipped straight to this chapter because taxes felt urgent, go back. Apply for the estate's EIN promptly. A required Form 1041 uses the estate's EIN; if it has not arrived by the filing deadline, have the preparer follow the current Form 1041 instructions for an EIN that is still pending.

What the estate owes beneficiaries: the K-1 surprise

If the estate distributes income to beneficiaries during the year, each of those beneficiaries gets a Schedule K-1 showing their share of what the estate earned and passed through to them. They report that income on their own personal returns.

Say that out loud to the people on your distribution list well before it happens. Your brother who received a check may later receive a Schedule K-1 reporting income he may need to include on his own return. Tell beneficiaries that before the distribution; the CPA can explain what their K-1 means.

The mechanics behind it are simpler than the form looks. An estate generally gets to deduct the income it distributes to beneficiaries from its own taxable income, up to a limit tied to what the estate actually earned that year. The beneficiary then picks up that same income on their own return instead. The deduction exists so the same dollar isn't taxed in both places, and the K-1 is how the IRS tracks whose return it landed on. If the estate holds income back instead of distributing it — saving it for a later court-approved distribution, say — the estate itself owes the tax on what it kept.

That's one more reason the timing of a distribution isn't only a family question. It's a tax question too, and it belongs on the same list you take to the CPA.

Publication 559 is free, and it's actually useful

The IRS publishes a guide written for exactly the job you're doing — Publication 559, Survivors, Executors, and Administrators. It isn't dense tax-code language aimed at a preparer; it's aimed at the person holding the Letters. It includes a checklist of forms a personal representative might need, organized by due date, and the same worksheet mentioned earlier for splitting 1099 amounts between the decedent's final return and the estate's return.

Download it, print the checklist page, and put it in the folder. It won't replace a CPA for anything complicated, but it will tell you what questions exist before you've thought to ask them.

The twelve questions for the CPA

Sam's six-minute increments taught me something: a good professional's time is wasted on vague questions and well spent on specific ones. So before your first meeting about the estate's income taxes, write these down and bring the sheet with you.

1. Does this estate need to file Form 1041 at all, under this year's current instructions?
2. What's our gross income for the year so far, and does it clear the filing threshold?
3. Should we pick a calendar year or a fiscal year, and what difference would it make for this specific estate?
4. Is there unreported income from a prior year the decedent didn't file?

5. Which 1099s need to be split between the final 1040 and the estate's 1041, and by how much?
6. Is a refund due on the final return, and does Form 1310 need to go with it?
7. Will the estate owe estimated tax payments during the year, and on what schedule?
8. Do we need to file Form 7004 for more time, and does that change what's due by the original deadline?
9. If we distribute to beneficiaries this year, what will their K-1s likely show, and when should I warn them?
10. Are there any unfiled prior-year returns for the decedent I don't know about yet?
11. What records do you need from me, and in what format, before our next meeting?
12. What's the one thing about this estate's taxes that worries you most, that I haven't asked about?

Hand the sheet over on paper. Let the CPA answer in whatever order makes sense to them. A written question list can make that hour more useful and may help prevent avoidable amendments.

What Sam actually meant

Back to that sticky note. What Sam meant, once I understood it, wasn't complicated: Bev's life and Bev's estate are not the same taxpayer, even though they share a name and a shoebox of paperwork. Her final individual return still accounts for income through the date of death. The estate accounts for its own post-death income under a separate taxpayer number.

Getting that distinction straight in your head early is worth more than any form in this chapter. The forms, your CPA can walk you

through. The idea that there are two taxpayers, each with its own deadline to put on the calendar — that's the part you have to bring to the first meeting yourself.

Chapter 9: Estate Tax — Probably Not You, But Read This Anyway

Sam had Bev's folder open on his desk, and I asked him the question I'd been putting off since January.

“Does she owe estate tax?”

He didn't open a book. He didn't even reach for his yellow pad. “Add up what she had. Then I'll tell you in about ten minutes whether you need to worry about this chapter at all.” He was right about the ten minutes. He was right about the rest of it too — for most estates, this is the shortest chapter in the folder.

The number, and the three things you add before you use it

Here's the number first. For deaths in 2026, the IRS's federal estate tax filing threshold is \$15,000,000. For deaths in 2025, it was \$13,990,000. Both figures come from the current Instructions for Form 706.

But the number alone isn't the test, and this is where a lot of kitchen-table arithmetic goes wrong. For a US citizen or resident who dies in 2026, Form 706 is required when the gross estate plus adjusted taxable gifts and specific exemption exceeds \$15,000,000, or when the executor elects portability regardless of estate size. Three things get added together before the comparison happens. Add only the first one and you can talk yourself out of a filing you owe.

Adjusted taxable gifts is the one nobody sees coming. Large gifts made during the person's lifetime can come back into this calculation years later, and the Form 706 instructions expect reasonable efforts to identify them. There's a section near the end of this chapter on how to find out whether any were made. Read it before you decide this chapter doesn't apply to you.

Notice what that threshold tracks: the year someone died, not the year you happen to be filing the paperwork. If your mother died in November of 2025 and you're sorting through this in March of 2026, her estate is measured against the 2025 number, not the 2026 one. Write the date of death on the folder next to the threshold you're checking it against, so nobody down the line confuses the two.

For an estate like Bev's, the number sits so far above what she actually owned that the conversation ends there. A paid-off house, a car, a few accounts, a small annuity nobody remembered: that total didn't get near fifteen million dollars. If that's your situation, read the rest of this chapter anyway, because two paragraphs in it might still apply to you even when the tax itself never will.

What actually gets counted

The threshold only means something once you know what goes into the pile being measured against it. The IRS counts the gross estate: essentially everything the person owned, or held certain interests in, valued at fair market value on the date of death. Bank accounts, real estate, investments.

And some things that never pass through probate at all. The gross estate may include certain life-insurance proceeds and trust interests even when they pass outside probate. Have an estate-tax professional classify each policy and trust under the current Form 706 instructions. Whether a particular policy counts turns on details

like who the proceeds benefit and what control the person kept over the policy — which is a reading job, not a guess.

So an estate that looks comfortably “under the limit” using the house and the checking account can look different once a policy or an old trust gets classified and added in. It’s one more reason the valuation work from Chapter 6 isn’t only about the court’s inventory — the same numbers feed this chapter’s test.

The clock that starts without telling you

If an estate does need to file, the form is Form 706, and its deadline is the tightest one anywhere in this book: generally nine months after the date of death. A timely Form 4768 requests an automatic six-month extension to file. It does not extend the time to pay; pay the estimated tax by the original due date unless the IRS grants a separate payment extension. Chapter 8 said the same thing about Form 1041, and it’s just as true here.

Nine months sounds like a lot of time in the first week. It doesn’t sound like a lot of time once you’ve spent three of those months waiting on a single institution’s written answer about what an account is actually worth. If there is any chance this chapter applies to your estate, that clock starts on the date of death, and it starts whether or not you’ve found it yet.

Portability: the paragraph that might pay for this book

Here’s the scenario that makes this chapter worth reading even for a modest estate: your parent died survived by a spouse.

The executor of the first spouse’s estate can elect portability on Form 706, making that spouse’s unused exclusion available to the survivor. The IRS calls it the deceased spouse’s unused exclusion

amount. Note who does the electing: it's the executor of the estate of the person who died first, on that estate's return, not something the survivor files on their own later. Which means an estate that owes no tax at all, and wasn't otherwise required to file, might still need a return filed — so the surviving spouse carries the unused exclusion forward.

The ordinary deadline is the same Form 706 due date described above, with the same extension rules. But if that deadline is missed and the estate wasn't otherwise required to file, there's a second door. A simplified late-election procedure can reach all the way to the fifth anniversary of the date of death, under the IRS's Revenue Procedure 2022-32. It isn't automatic. It isn't something to attempt without an estate-tax professional reading the current procedure with you.

The return made under that procedure has to say, right at the top, that it's being filed under this specific relief — a line only a professional should be drafting. If your situation is “a surviving spouse, and we never filed anything,” that sentence is the reason to pick up the phone today rather than next month.

Portability is one reason an estate below the filing threshold may file Form 706 even when no estate tax is due. Nobody owes a dollar of tax. The filing itself is the point — it locks in a number the surviving spouse might need years later, at a death nobody is thinking about yet.

What closes a case, and what doesn't

A beneficiary may eventually ask you for an estate tax closing letter — proof, in their mind, that everything is settled. Here's the honest answer in two parts.

First, the letter exists only where a Form 706 or Form 706-NA was actually filed, even in cases where no tax ends up being owed. It

is never issued for a Form 1041, the estate's income tax return from Chapter 8. If nobody filed a Form 706 for your estate because nobody had to, there is no closing letter coming. That isn't an oversight on your part.

Second, filing doesn't produce one by itself. Under the current Form 706 instructions, the IRS issues a closing letter only when someone requests it through Pay.gov and pays the user fee in effect at the time. Those instructions also tell requesters to wait at least nine months after filing before asking. And the IRS points executors to an account transcript as a no-charge alternative showing the same account activity. If a beneficiary wants documentation, those are the two roads, and the transcript is the faster and cheaper of them.

Your state might disagree with the IRS

Everything above is federal. It is not the whole story.

A number of states run their own estate tax, inheritance tax, or both — entirely separate from the federal system, and at thresholds that can sit far below the federal figure. Some tax the estate itself. A few tax the person who inherits instead, which is a different design with different rules about who owes what.

Which states do this, and at what dollar amount, changes over time. This book isn't going to print a fixed list of states and numbers, because printing last year's figure as this year's fact is exactly the kind of mistake that gets someone an unpleasant letter from a state revenue department two years from now. Check your own state's department of revenue directly — not a federal page, and not a search result that's three years old — even when the federal Form 706 doesn't apply to you at all. An estate with no federal filing obligation can still owe a state one, and a few states tax amounts the federal government would never look at twice.

Bev's estate never came close to the federal threshold, and Ohio never asked her estate for a dime beyond what Chapter 8's income tax returns already covered. That isn't a promise about your state. It's a reason to spend the ten minutes checking rather than assuming your state works the way Ohio happened to.

The threshold test

Here's the tool for this chapter, and it's short on purpose.

1. Add up everything the person owned, valued as of the date of death: real estate, accounts, investments, business interests, vehicles, and anything else of value.
2. Add any life-insurance proceeds and trust interests a lawyer or CPA tells you count toward the gross estate under the current Form 706 instructions.
3. On its own line, add adjusted taxable gifts — lifetime gifts that have to come back into this calculation — and any specific exemption. If you don't know whether gifts were made, that line is a question for a professional, not a zero.
4. Write the date of death next to the total, and write next to it which year's federal threshold applies — \$15,000,000 for 2026 deaths, \$13,990,000 for 2025 deaths. Compare the total from lines 1 through 3, not line 1 alone.
5. If that total is nowhere close to the threshold, and no portability election is being made for a surviving spouse, check your state's department of revenue for its own estate or inheritance tax, and otherwise set this chapter aside.
6. Call an estate-tax professional this week, not next month, if any of these are true. The total is anywhere close to the federal number. There's a business, farm or out-of-state real estate in the

mix. A prior taxable gift was ever made, or you can't rule one out. Or there's a surviving spouse and nobody has filed anything yet.

Six lines. If your answer lands on line five, you're done with the chapter in about the time Sam took with Bev's numbers.

When this is not a do-it-yourself afternoon

A business interest. Farmland. Real estate in a second state. A gift made years ago that might count against the lifetime exemption. An estate sitting anywhere near the threshold once life insurance and trust interests are added in. A surviving spouse, with nothing filed yet, and a due date that may already be close.

Any one of those is a reason to hire an estate-tax professional, not a reason to keep reading chapters and hoping the arithmetic works out in your favor. This is the one part of the job where guessing wrong doesn't just cost you an afternoon at the courthouse. It costs money, and sometimes it costs an election that can't be taken back once its own window closes.

Gifts made while they were alive

One more wrinkle belongs in this chapter: lifetime gifts. A person can generally give a certain amount to any one recipient each year without it counting against their lifetime exemption. The IRS calls that the annual exclusion, and the figure changes periodically, so check the current year's number rather than one remembered from somewhere else. Gifts above that yearly amount generally get reported on the giver's own gift tax return and reduce the exemption available later.

What that means for you as executor is the adjusted-taxable-gifts line from the opening section. If the person made large gifts in their

lifetime — helping a grandchild buy a house, say, or transferring a chunk of a business — those gifts can come back into the Form 706 calculation. The money is long gone. The exemption it used isn't.

You likely won't know whether this happened from the estate's current paperwork alone. So ask whoever did their taxes, and ask directly: did they ever file a gift tax return? If the answer is yes, or even "I'm not sure," that's a question for the estate-tax professional, not a guess made from old bank statements.

Why this chapter stays short on purpose

I asked Sam once why he didn't just hand me a flowchart for all of this instead of talking me through it over his desk. He said a flowchart works fine right up until somebody's situation doesn't fit one of its boxes. Estate tax is full of situations that don't fit the boxes — a business interest here, an old gift there, a spouse who remarried. A ten-minute conversation catches the thing a chart would have missed.

That's the spirit of this chapter. It isn't trying to turn you into someone who can fill out a Form 706. It's trying to get you to the six-line test fast, tell you honestly when the answer is "you're fine," and tell you just as honestly when the answer is "stop reading and make the call." For Bev, it was the first answer, at a desk above an insurance agency in Chillicothe. If it's the second answer for you, make the call this week — before the nine months run.

So add up the three lines. Then put the folder down, or pick up the phone.

Chapter 10: Handing It Out Without Blowing Up the Family

Kevin called me about the pickup eleven days after we buried our father.

He was in Tucson. He'd flown home for the funeral and flown back, and the truck was sitting in Dad's driveway in Ohio with a dead battery and four inches of leaves on the hood. Dad had told him twice, over the years, that the pickup was his. I believed Kevin. I still believe him. The will didn't mention it, the inventory hadn't been filed, and I'd been the personal representative for less than two weeks.

What I wanted to say was yes. He's my brother and he'd just lost his father too.

What I did instead was ask for a day.

Why the order matters more than the fairness

The job has a sequence, and the sequence is the whole reason an executor can be held responsible for money that is no longer in the estate.

Claims come first. Then you hold back enough to cover taxes and the costs of administration. Only then does distribution happen, with whatever authority your state's process requires. Partial distributions, where they're allowed, need authority behind them, a reserve big enough to cover what's still outstanding, and written advice from the estate's lawyer any time you can't say for certain what the estate still owes. Your state's rules and any order the court

has entered are what actually control this, not the order I'm giving you.

Notice what that means in practice. Every dollar you hand over early is a dollar you may have to find again. If a late claim arrives after you've emptied the account, the people holding the money are your relatives, and the person who has to get it back from them is you. If you can't get it back, the question becomes whether you should have paid it out in the first place. Chapter 7's claim triage sheet exists so that question never gets asked about your estate.

That's the arithmetic that answered Kevin. Not whether he deserved the truck. Whether I could prove, on the day I handed him the keys, that the estate didn't need what the truck was worth.

The mistake that has a name on it

Early distribution is an executor's error, and it doesn't feel like an error while you're making it. It feels like kindness. Somebody is grieving, somebody needs the money, somebody has waited long enough, and the estate has a balance sitting in it that's clearly going to them eventually.

The word doing the work in that sentence is "clearly."

You don't know what the estate owes until your state's claim period has run and you've worked through what came in. You don't know what the final tax picture looks like until the returns from Chapter 8 are filed and whatever was due has been paid. Until both of those are true, the number you think is the residue is an estimate wearing a disguise.

The Federal Trade Commission, in its guidance on the debts of people who have died, lists being legally responsible for settling an estate and failing to follow your state's probate laws among the situations in which a family member can end up personally

responsible for a debt. Distributing before the law said you could is one way to walk into that. Not the only way. A common one.

So the default answer to “can I have it now” is “not yet, and here’s when I’ll know.” That is a different sentence from “no.” It has a date in it.

What your state may let you do sooner

Some payments and partial distributions can happen before the end of the case, and this is where I have to stop being useful in a general way. Whether you may pay funeral costs, an allowance to a surviving spouse or minor child, the costs of administration, a secured debt or an expense that keeps property from falling apart depends entirely on where the estate is being administered. Some states permit it. Some require it. Some put conditions on the amount or require a court’s blessing first.

There’s no national rule here, and a book that prints one is guessing with your money.

Ask two different people two different questions. The probate clerk can tell you which form a request like that uses in your court and when it has to be filed. The estate’s lawyer tells you whether you have the authority to make the payment at all, and from which funds. That split is the same one Chapter 4 set out, and it matters more here than anywhere, because this is the chapter where money actually leaves.

Write down whichever answer you get. Date it, and note who told you. If a beneficiary later asks why the house payment got made in March and their check didn’t come until November, that line is your answer.

Nobody receives anything without signing for it

When you do distribute, every item and every dollar leaves against a signature.

A receipt-and-release is the ordinary instrument for this: the person receiving acknowledges in writing what they got, that it's their share, and that they're releasing you with respect to it. The form, the wording and what it does legally vary by state, and the estate's lawyer should draft or review yours. I'm not going to print a template for a document whose effect depends on fifty different bodies of law.

What I will tell you is why it earns its keep beyond the obvious.

Chapter 11 explains the closing paperwork your state may require. The warning belongs here. A release signed by someone who feels they were kept in the dark is a release you may end up defending. So let the lawyer draft the wording, and make sure nobody is seeing the estate's numbers for the first time on the day you hand them a pen.

The cooperation of the people waiting on you is worth something to your sanity, and in some states it's worth something concrete at the end. You don't get that cooperation by appearing in November with a stack of paper and a pen. You get it by keeping people informed from February onward, so that by the time you ask for a signature, nobody feels like they're signing something they haven't been allowed to see.

The item that isn't there anymore

Wills name specific things. Estates don't always still have them.

A will drafted in 2004 may leave a named grandchild a car sold in 2019, a savings account closed when the bank merged, or a house that was refinanced and then sold to pay for care. What happens to that gift is a question of state law and of how the will itself is worded, and it isn't a question you should settle at the kitchen table with the

person who was supposed to receive it. Take the will's exact words and the evidence of what happened to the item to the estate's lawyer, and get the answer in writing before you tell anyone anything.

Then tell them yourself, early, rather than letting them discover it when the distributions go out. A person who learns in month three that the item is gone has a disappointment. A person who learns in month eleven, on the day everyone else gets their share, has a grievance.

The part that causes more fights than money

Personal property is where estates go sideways. Not the brokerage account. The dining room set, the tools, the photographs, the ring that three people remember being promised.

Money divides cleanly. A quilt doesn't.

Four approaches have worked for people I know, and all four work better than the alternative, which is letting items leave the house one carload at a time while nobody keeps a list.

The round-robin pick. Draw an order, then take turns choosing one item each, round after round, until everyone passes. The person who picks last in round one picks first in round two.

The sealed bid. Everyone writes down what they'd pay for a contested item, in an envelope, same day. High bid takes it and the amount comes off their share. This one needs the lawyer's sign-off, because you're selling estate property to a beneficiary, and that's precisely the transaction a fiduciary has to be careful about.

The three-things letter. Before anyone comes to the house, ask every person in writing to name the three things they most want and why. Most lists overlap less than families expect. The ones that do overlap are now identified before anybody is standing in a bedroom.

And the rule I'd keep even if I dropped the other three: the house gets emptied once, together, on a day everyone can attend. One day.

Everyone there, or everyone represented by someone they chose. Nobody gets a private afternoon with the place.

Whatever method you use, write down what went where. Item, person, date, signature. That list is part of the same record the court or your state's process will eventually ask you to account for.

The monthly update

Of every tool in this book, this is the one I'd argue hardest for.

Every month, on the same date, send every person entitled to a share the same short written update. Whether or not anything happened. Whether or not they've asked. Six lines:

1. What came into the estate this month, in one sentence each.
2. What went out, and to whom, in one sentence each.
3. What I'm waiting on, and from whom.
4. What I expect to happen next.
5. When the next update goes out.
6. What I need from you, if anything.

For Aunt Bev's estate I sent eleven of these over fourteen months. Email to the people who read email, a one-page letter to the one who didn't. Some months line three was the only line with anything in it. I sent it anyway. That's my own habit rather than any state's requirement, and your court may require a formal accounting on its own schedule regardless of what you send out informally.

Two things happened because of those eleven pages. Nobody ever had to ask me what was going on, which saved me the phone calls. And when I finally needed signatures, I was asking people who already knew every number I was about to show them.

The update took me about fifteen minutes. It saved more phone calls than I could count.

When to stop and get your own lawyer

There's a line in this job, and I want you to recognize it from the far side.

If someone challenges the will. If a beneficiary demands a formal accounting. If anyone says the word "sue," or stops talking to you and starts talking to a lawyer of their own. If you're asked to do something you think is wrong and the person asking has a share of the estate.

Stop distributing. Stop deciding. Get a lawyer for the estate, and ask whether the circumstances mean you also need one for yourself, because those are not always the same lawyer and the difference matters when somebody is accusing you personally.

Where the court allows it, the estate's legal fees come out of the estate. Sam put it to me plainly during Bev's case: an hour of his time, asked at the start of a problem, cost a fraction of what the same problem costs after it's been handled wrong for three months. He billed in six-minute increments and he was still the cheapest part of that year.

Don't try to be even-handed and your own counsel at the same time. Those two jobs pull in different directions.

How to say no in writing

Which brings me back to Kevin and the truck.

I called him the next evening and told him no, and then I sent an email, because a phone call isn't a record and because I wanted him to be able to read it twice without me in his ear. Four sentences, and I've used the same four shapes for every version of this conversation since.

Sentence one: what you asked me for, stated accurately and without hedging it.

Sentence two: the answer, which in this case was that I couldn't release the pickup yet.

Sentence three: the reason, in plain words, with the stage of the process named. The inventory hadn't been filed, the estate's debts weren't yet known, and I didn't have the authority to hand over property that might be needed to pay them.

Sentence four: what happens next, with a date. I'd know more after the inventory was filed, I'd tell him what I learned, and the truck wasn't going anywhere in the meantime.

That's the whole letter. No apology for doing the job. No explanation of fiduciary duty. No sentence beginning "I know this is hard," which is true and helps nobody.

What I'd add now, having done this twice more since: say in writing that you're saying no to the timing, not to the person, when that's actually what's happening. Kevin wasn't wrong about what Dad had said. He was early.

What it cost, and what it saved

Kevin was angry for about six weeks. He told a cousin I was being rigid. He was polite with me on the phone in a way that was worse than if he'd shouted.

He got the pickup. It took most of a year, and I pulled the battery and kept it on a trickle charger in our garage through the winter so the thing would start when the day came. When the estate could release it, I had the paperwork ready and he had the truck inside a week.

Here's the part I didn't expect. Three years later, when our mother died and I was doing it again, Kevin was the one who told the rest of the family to leave me alone and let the process run. He'd watched it work once. He remembered that the answer had a date in it and that the date had been true.

Say no to the timing. Then keep the date you gave.

Chapter 11: Closing the File, Getting Paid, and Getting Out Clean

Fourteen months after Bev died, I parked outside the Ross County courthouse for what I was fairly sure would be the last time.

I'd been there enough that the deputy clerk at the Letters window knew my face. This time I wasn't at that window. I was in a courtroom with a folder an inch and a half thick, waiting for a judge to sign one piece of paper that would end a job I'd started at Bev's kitchen table with a legal pad and no idea what "letters testamentary" meant.

The hearing took eleven minutes. The drive home took longer, and I spent most of it trying to name the feeling. It wasn't relief exactly. It was closer to what you feel setting down a box you've carried so long your arms don't trust that it's gone.

The last accounting

Before anyone signs anything, you account for every dollar, from the first day to the last.

This is where Chapter 4's logbook and Chapter 5's money notebook finally pay for themselves. Every dollar that came in — the accounts you consolidated, anything you sold, interest the estate account earned. Every dollar that went out — debts paid once Chapter 7's claim period ran, taxes paid once Chapter 8's and Chapter 9's returns were settled, your own reimbursements, the lawyer's fees. If you kept the log the way Ruth from month one told

you to, this accounting is mostly transcription. If you didn't, this is the month you find out what that cost you.

Your state may require the final account or a notice of the proposed closing to be served on people entitled to a share. Follow the court's written instructions and the estate lawyer's direction on who receives what, and when. In California, the state courts' probate self-help pages say the final account doesn't have to be filed if everyone entitled to distribution signs a written waiver of account or a written acknowledgment of receipt of their share. Skipping the account does not erase the final report, petition for final distribution, notice, or court decision that California still requires. Ask your estate lawyer what your state permits. I'd sent eleven monthly updates for exactly this reason. By the time I needed signatures, nobody was reading anything for the first time.

The petition, the hearing, and the piece of paper that ends it

What you file next has a different name in every state, but the first steps rhyme: ask the court to approve what you did and approve what's left to distribute.

In California, the final report, account when required, and petition for final distribution come first. The judge reviews the accounting, confirms the distribution plan, and signs an order. After the court's distribution order has been carried out, a personal representative may use Form DE-295 to ask for a final discharge — a separate, later step, not something that happens at the same hearing.

Your state may use another sequence or name, so have the estate lawyer identify the document that ends your appointment before you close the account. Ask the clerk what yours is called and get it well before you expect to need it, because an estate rarely closes exactly on schedule.

Can you get paid for this

Yes, in most states, and the honest answer about how much is unsatisfying: it depends entirely on where you are.

Some states set executor compensation as a statutory percentage of the estate. Others use a “reasonable compensation” standard that a court has to approve. California falls into the first group, and its self-help guide notes that representative and attorney fees there are set by law as a percentage and usually aren’t paid until the end of the case. There’s no national average I can hand you, because there isn’t one — not one that’s verifiable, and a book that printed one would be guessing with your money the same way Chapter 7 wouldn’t guess with your creditors.

Ask the clerk which form and filing date your court uses for compensation. Ask the estate’s lawyer what your state’s rule allows, whether approval is required, and when you may take a fee. Write the answer down with the date, the same as every other answer in this book.

The tax trap hiding in your own paycheck

Here’s the part that catches people who didn’t see it coming.

A fee you take for serving as executor is taxable income to you. An inheritance, generally, is not. If you’re both the executor and a beneficiary — which describes most readers of this book — that difference is arithmetic worth doing before you decide what to take, not after.

Sometimes waiving the fee and taking your share as an inheritance instead comes out ahead once you account for the tax. Sometimes it doesn’t, especially if the estate is large enough that every dollar matters to beneficiaries other than you. This is a CPA question, not an internet one, and it’s worth one more call to

whoever did the estate's income tax returns in Chapter 8 before you file anything that sets your compensation in stone.

What you are liable for, said plainly

You are not personally responsible for the debts your parent or aunt left behind simply because you're related to them. That was true in Chapter 7 and it's still true now.

What can make you personally liable is handling the job wrong. The Federal Trade Commission's guidance on this lists it as one of a short set of exceptions: a person legally responsible for settling an estate who didn't follow state probate law can end up owing the money themselves. Distributing before the claim period ran, as Chapter 10 warned against. Paying the wrong creditor ahead of one with a stronger legal claim. Commingling estate money with your own, which Chapter 5 told you never to do for exactly this reason.

None of those are things that happen to you. They're things you do, usually in a hurry, usually meaning well. The whole point of every log, every letter, every written answer this book has asked you to keep is that if anyone ever questions a decision you made, you can show your reasoning and the date you made it. That record is your protection, and it's the cheapest insurance you'll ever carry.

Two federal tax forms to discuss with the CPA

Two IRS forms are worth raising with the CPA before you consider the estate closed on the tax side.

Form 4810 requests prompt assessment of certain income-tax returns; it does not itself discharge you. Form 5495, filed after the relevant returns, requests discharge from personal liability for the decedent's income, gift, and estate taxes. Neither form replaces state-court closing steps, creditor rules, or advice on this estate. Read

the current instructions for each one — these aren't forms to fill out from memory of what a book told you in 2026.

What to keep, and for how long

There's no single answer here either, and I'd rather tell you that plainly than invent a number that sounds tidier than it is.

The IRS ties how long you keep a record to how long that record's return could still be questioned. Generally three years. Six years if income was underreported by more than a quarter of what was shown. Seven years for a claim involving worthless securities or a bad debt. Indefinitely if a return was never filed at all. And separately, for anything that shows what a piece of property was worth, keep that record until the limitation period runs out for the year the property is eventually sold — because whoever inherited it will need that number for their own taxes someday, not just you for yours.

Your state's probate rules or the estate's lawyer may ask for longer than the IRS does. Take whichever date is latest.

My own habit — and I want to be clear this is habit, not rule — was one labeled banker's box, kept seven years, with a sticky note on the lid listing what was inside and when it could go. It's not a number anyone has to follow. It's just long enough that I stopped worrying about it, which was worth something to me even if it isn't required of you.

Closing the account, closing the EIN, closing the file

The last few administrative items, in the order I did them for Bev.

Close the estate bank account once every check has cleared and every return is filed. Mark the estate's final income tax return as

final, exactly as the instructions say to. File any outstanding returns and pay whatever's due — nothing closes cleanly with an unfiled return sitting behind it. The EIN itself can't be canceled; it's the estate's permanent federal number for as long as the estate existed. What you can do is ask the IRS to deactivate the account once everything's filed and paid, following whatever its current written procedure asks for. And file Form 56 one more time — not to start the fiduciary relationship this time, but to tell the IRS it's over.

Each of those is a small task. Together they're the difference between a file that's actually closed and one that looks closed until a letter arrives eighteen months from now addressed to an estate nobody's watching anymore.

When something arrives after the door is shut

It will happen to someone reading this. A dividend check for forty dollars. A refund nobody expected. A bill from a hospital that took its time.

If the estate account is already closed and the discharge order is already signed, don't assume you can simply handle it yourself the way you might have in month three. Call the lawyer who handled the closing and ask what your state's process is for a late asset or a late claim against an estate that's already been distributed. Some states have a simple mechanism for exactly this. Others want the file reopened. Either way, it's a phone call, not a decision you make alone at your own kitchen table.

The drive home

I didn't cry at the hearing. I'd expected to, and I didn't.

What got me was turning onto the county road toward the house, the same road I'd driven to Sam's office that first Thursday fourteen

months earlier, legal pad still in the car, not yet knowing what any of the forms were called. I knew all of them now. That was the whole difference between that drive and this one.

Dale had supper waiting, and he didn't ask how it went until I'd sat down. "Signed," I told him. He nodded like that settled something for him too, and it probably did — he'd made his own supper more nights that year than either of us had counted.

The tool: the closing checklist, and the keep-until rule

Fifteen items, roughly in the order they come due. Check each against your state court's current instructions and your county probate clerk before treating any of them as finished.

1. Final accounting complete: every dollar in, every dollar out, since day one.
2. If your state allows it, the signed paperwork gathered that lets the final account be skipped.
3. Petition for final distribution (or your state's equivalent) filed.
4. Hearing date confirmed; attend in case the judge has questions.
5. Discharge order (or your state's equivalent) received — the actual piece of paper, not just a verbal "you're done."
6. Executor compensation: confirm the court's form and filing date with the clerk, legal entitlement and required approval with the estate's lawyer, and tax treatment with the CPA before taking any fee.
7. Form 4810 considered with the CPA, if prompt assessment is something you want.
8. Form 5495 considered with the CPA, once the relevant returns are filed.

9. Final income tax return marked final, exactly as its instructions direct.
10. All outstanding returns filed, all tax due paid.
11. EIN deactivation requested once every return is filed and every tax is paid.
12. Form 56 filed again, to tell the IRS the fiduciary relationship has ended.
13. Estate bank account closed, only after every check has cleared.
14. Distribution records and receipts copied to beneficiaries who'll need basis information for inherited property.
15. Records boxed, labeled, and dated for disposal using the keep-until rule below.

The keep-until rule, one line per record. First: which return does this support, and when does that return's limitation period end. Second: does it show the basis of property a beneficiary still owns — if so, keep it and give that beneficiary a copy. Third: did the discharge order, the court, or the estate's lawyer set a longer period than the tax rules require. Take whichever date is latest, write it on the box, and don't open the box again until that date arrives.

What You'll Know in a Year

Jess called on a Sunday, almost exactly a year after the discharge order came through, to ask something she'd clearly been sitting on. Her father-in-law was sick, and he had named her somewhere in his will, probably as a backup.

"If it's actually me," she said, "what's the one thing you'd tell me before I said yes?"

I was at the sink, and I didn't answer right away, because I wanted to give her something true instead of something that sounded good on the phone.

I told her to write things down, ask before guessing, and let the required order outrank her instinct.

You don't need a law degree for any of that. You need a notebook, a habit of checking the court's written instructions for forms and deadlines, and enough stubbornness to say "I don't know yet; I'll ask the estate lawyer" when the question is about authority, liability, or a disputed decision.

Then she asked the question underneath the first one. Could she say no, and would saying it make her the kind of person who says no.

You can decline before appointment because you lack the time or can't be even-handed. Tell the alternate and check with the court what to file. After appointment, don't simply walk away; ask the estate lawyer how to step down under your state's rules. A no before you're appointed is a scheduling fact and a fairness fact. A no after you're appointed is a legal step with a procedure attached, which is a different animal and not one to improvise.

What the job gives you back isn't peace about the death. Nothing I did for Bev made losing her hurt less. What it gave me was something smaller and, it turns out, more useful: at the end of fourteen months, I could account for every dollar and every decision, out loud, to anyone who asked. Kevin asked, eventually, mostly out of curiosity by then. I had an answer for every line. That's not closure. That's just not having anything to be afraid of when the phone rings.

She wanted to know which single piece of paper she should hang onto if she kept nothing else. If a court appoints you, keep the Letters or order and ask each institution whether it needs a certified copy. A small-estate affidavit is different: check your state's conditions and the institution's requirements before using it; it does not give you general executor authority. Ask an estate lawyer if your powers are unclear. I have watched people assume one document opens every door, and then stand at a teller window learning otherwise with a line behind them.

Here's the part nobody warned me about, and I'd want somebody to warn her.

The year is not dramatic. It's boring. Two hard weeks at the front, two hard weeks at the end, and in between eleven months of waiting on other people's calendars — a processing window, a claim period, a return that can't go anywhere until a form arrives in February. For me, waiting was the hardest part to stay dutiful inside of. The weeks I nearly let things slide weren't the sad weeks. They were the flat ones, when the folder sat on the dining room table with no reason to open it, so I stopped opening it. Then I'd lost a week of the notebook and had to rebuild it out of memory. That's the one thing I've spent this whole book telling you not to do.

Jess asked whether it cost me anything. Yes, and not money, because the estate paid me back. Saturdays, mostly. If you're married, say the sentence out loud before you say yes to the court:

this is going to eat our weekends for about a year. Let the other person be annoyed in advance instead of ambushed in month four.

Then she asked something nobody had asked me. Did I ever get angry at Bev.

I put the dish down for that one.

Twice that I remember clearly, and both times over paperwork she could have left in better shape and didn't. Not because she was careless — because she thought there was time. Being angry at somebody who can't answer you is a thin, strange feeling, and it passes, and it doesn't mean you loved her less. It means you were tired and the file was short a page. If it happens to Jess, I told her, notice it, let it be true for an afternoon, and don't say it to the family. They're not in the file. They'll hear it as something it isn't.

I told Jess the map is short enough to say in one breath, so she'd remember it standing in a kitchen the way I was. Decide. Appoint. Find. Open. Pay. File. Distribute. Close. The map helps me remember the work; your state's procedure, any court order and tax deadlines set the actual sequence. Ask the estate lawyer when steps collide.

She asked what happens if she's named executor before her father-in-law has even had the conversation about a will. That's a different book — *Estate Planning for Beginners* — and I told her so, by title. The questions about writing a will, naming beneficiaries and setting up a power of attorney live there, not here. And if her mother-in-law is the one who dies first and Jess needs help with arrangements, mail, and the first weeks before appointment, that's *The First 90 Days After a Parent Dies*. This book starts when someone is deciding whether to serve or has been appointed.

One more thing, and I saved it for last on purpose. Your state court's self-help site and your county probate clerk have the current forms and deadlines; nothing in this book replaces them. For a question with real weight behind it — your authority, your exposure,

a rule two people read two different ways — that belongs to a lawyer who knows your state, not a guess from a book written three years before you needed it. I wasn't guessing when I told Bev's estate's lawyer I didn't understand something. I asked. Every time. That's the only part of this I'd insist on if I could insist on just one.

Jess was quiet for a second, then said she'd call Dale next, since he'd lived through the whole thing standing next to me and might remember parts I didn't.

"He'll tell you about the thermos," I said. "Ask him anyway."

She laughed, and we talked about something else for a while. That was the end of it. Not a lesson. Just a phone call between two people — one who now knew what "letters testamentary" meant, and one who didn't yet, and might never need to.